Canvas LMS

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. California Privacy Notice
02. Instructure Product Privacy Policy
03. Privacy
04. View Trust Center
05. Instructure COPPA Privacy | Policy
06. Data Processing Addendum | Policy | Instructure
07. Marketing Privacy | Policy
08. Master Terms and Conditions | Instructure
09. Product Privacy Notice Center | Instructure | Instructure
10. Institutions & Educators Privacy | FAQ
11. Students & Parents Privacy | FAQ
12. Security
13. AI Governance
14. Compliance
15. Legal
16. Security

Competitor website

01 | California Privacy Notice

https://www.instructure.com/policies/california-privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

California Privacy Notice | Policy

Last Updated 20 September 2023

This California Privacy Notice (“CA Privacy Notice”) contains disclosures required by the California Consumer Privacy Act (“CCPA”) and applies only to California residents.

This Privacy Notice describes Instructure’s collection, use, and disclosure of personal information as defined in the CCPA, as well as your rights with respect to that personal information. It applies when Instructure is acting as a “business” as defined by the CCPA, for example, when we collect personal information through our corporate websites, and it pertains to and supplements the Instructure Marketing Privacy Policy.

Instructure also processes personal information through our products on behalf of our customers, in order to provide services to our customers. Under the CCPA, when Instructure acts on behalf of its customers, Instructure processes personal information as a “service provider,” a designation which is not subject to the disclosures and rights set forth in this Privacy Notice. To exercise your rights with respect to that personal information, you must contact the relevant Instructure customer—for example, the school you attended or company you worked for when you used an Instructure product. Instructure will cooperate with that business to fulfill your request if they request that we do so. To learn more about how Instructure treats personal information when acting as a service provider, please view the Instructure Product Privacy Policy.

Consumers with disabilities may access this notice by using a screen reader or contacting Instructure for further assistance.

Personal Information We Collect, Disclose for a Business Purpose, and Sell.

In the past 12 months, we collected, disclosed for a business purpose, sold, or shared the following categories of personal information about California consumers.

Categories of Personal Information

Disclosed for business purposes to the following categories of third parties:

Sold or Shared with the following categories of third parties:

Personal and online identifiers (such as first and last name, email address, or unique online identifiers)

All categories listed below.

All categories listed below.

Commercial or transactions information (such as products or services purchased, obtained or considered)

All categories listed below.

N/A

Internet or other electronic network activity information (such as browsing history, search history, interactions with a website, email, application, or advertisement)

All categories listed below.

All categories listed below.

Biometric information (such as call recordings)

All categories listed below.

N/A

Geolocation information

All categories listed below.

N/A

Professional or employment-related information

All categories listed below.

N/A

Education information

All categories listed below.

N/A

Inferences drawn from the above information about your predicted characteristics and preferences

All categories listed below.

All categories listed below.

Other information about you that is linked to the personal information above

All categories listed below.

All categories listed below.

Sensitive Personal Information. We do not use or disclose sensitive personal information for purposes other than those specified in the CCPA.

Categories Of Sources. We collect this personal information from the following categories of sources:

Consumers;

Advertising networks;

Analytics providers;

Businesses and education institutions associated with consumers;

Business partners;

Service providers; and

Affiliates not under the Instructure brand.

Why We Collect, Use, Sell, and Share California Information.

We use and disclose all categories of personal information we collect for our commercial and business purposes, as further described in the Instructure Marketing Privacy Policy. These commercial and business purposes for which we use and disclose these categories of personal information include, without limitation:

Our commercial purposes, which include:

Personalized marketing and advertising, including sending surveys and promotional communications and soliciting feedback;

Enabling commercial transactions and sending administrative email;

Responding to requests made by consumers including to respond to comments and inquiries; and

Operating, maintaining, and improving our websites and services including personalization.

Our business purposes as identified in the CCPA, which include:

Auditing related to our interactions with you;

Ensuring the security and integrity of our systems;

Legal compliance;

Detecting and protecting against security incidents, fraud, and illegal activity;

Debugging;

Performing services (for us or our service provider) such as account servicing, processing orders and payments, and analytics;

Internal research for technological improvement;

Internal operations;

Activities to maintain and improve our services; and

Other one-time uses.

We sold or shared personal information to third parties for the following business or commercial purposes:

Analytics related to the use of the Site and marketing; and

Advancing our commercial or economic interests, including by marketing our product and services.

We do not sell the personal information of minors we know to be under 16 years of age.

Recipients Of California Personal Information.

We disclose the categories of personal information designated above to the categories of third parties listed below for business purposes:

Service providers;

Affiliates not under the Instructure brand;

Third parties at your request or direction;

Data analytics providers;

Partners; and

Social networks.

We sell or share the categories of personal information designated above to the categories of third parties listed below:

Advertising/marketing companies;

Advertising networks;

Business services/agencies;

Business to business companies;

Marketing data companies;

Data analytics providers;

Social networks; and

Educational institutions & companies.

Your Rights Regarding Personal Information.

California residents have certain rights with respect to the personal information collected by businesses. If you are a California resident, you may exercise the following rights regarding your personal information, subject to certain exceptions and limitations:

The right to know the categories and specific pieces of personal information we collect, use, disclose, and sell about you, the categories of sources from which we collected your personal information, our purposes for collecting or selling your personal information, the categories of your personal information that we have either sold or disclosed for a business purpose, and the categories of third parties with which we have shared personal information;

The right to correct inaccurate personal information that we maintain about you;

The right to request that we delete the personal information we have collected from you;

The right to opt out of our sale or sharing of your personal information. Please note that if you opt out of certain types of sales or sharing, we will be unable to provide you with the services that rely on such sales or sharing; and

The right not to receive discriminatory treatment for the exercise of the privacy rights conferred by the CCPA.

To exercise any of the above rights, please contact us using the following information and submit the required verifying information, as further described below:

By phone at 1 (800) 203-6755

By accessing our webform at CA Privacy Rights link

By accessing our Do Not Sell or Share My Personal Information link

By email at privacy@instructure.com

Verification Process and Required Information.

Note that we may need to request additional information from you to verify your identity or understand the scope of your request, although you will not be required to create an account with us to submit a request or have it fulfilled. We will require you to provide, at a minimum, your full name, email address or other contact information, and information about your relationship with Instructure. If we cannot successfully verify your identity, or if the information would be too sensitive to disclose, we may not be able to provide the personal information to you.

Authorized Agent.

You may designate an authorized agent to make a CCPA request on your behalf by designating such an agent in writing or through a power of attorney. We will require the agent to provide us with proof that you have authorized the agent to make a CCPA request on your behalf prior to processing the request. We may request additional information to verify the request.

Changes to this CA Privacy Notice.

We may change this Privacy Notice from time to time. If we make any changes to this Notice, we will change the “Effective Date” above. If such changes are material, a notice of the changes will be posted along with the revised CA Privacy Notice. Once we update this CA Privacy Notice, the updates will be effective 7 days after the “Last Updated” date. We encourage you to visit this page from time to time for the latest on our privacy practices.

Contact For More Information.

For questions or concerns about Instructure’s privacy policy or practices, please contact us at:

Instructure, Inc.

6330 S 3000 E, Suite 700

Salt Lake City, UT 84121

Phone: (800) 203-6755

Email: privacy@Instructure.com

02 | Instructure Product Privacy Policy

https://www.instructure.com/policies/product-privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Instructure

Product Privacy Notice

Languages:

English

German

Dutch

Spanish

Portuguese

Effective Date: July 10, 2026

Introduction.

Instructure, Inc. and its affiliates and subsidiaries (“Instructure,” “we,” “our,” or “us”) prepared this Product Privacy Notice (“Notice”) to describe our privacy practices. This Notice governs information collected and processed by our products and services (collectively, “Products”), including the products listed here: https://www.instructure.com/product/all-products.

About our Users and our Products.

How we use information collected about you depends on our relationship with you. We provide our Products to Academic Institutions (such as K-12 schools and higher education institutions) and companies that use our Products to amplify teaching, elevate learning, provide professional development opportunities, and improve student outcomes.

If you use our Products through an Academic Institution or company, that school or company determines how the personal information collected about you is used. This means that your Academic Institution or company’s privacy notice governs the use of the personal information collected about you. This Notice is intended to provide transparency related to Instructure’s privacy practices only.

We have provided the following summary to help you understand what we do with the information we process through our Products and the relationship between our users and Products.

Instructure Product Family

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Products/Services

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Learning Ecosystem

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End Users

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Canvas

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Canvas LMS, Canvas Studio, Canvas Catalog, Canvas Student ePortfolios, Canvas Certified Educator Program, Canvas Career

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K-12, Higher Education, Business and Government, For Our Partners

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Educators and Faculty, Academic Institutions, Students, Parents/Guardians, Institution Administrators, Corporate Employees

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Canvas LMS is used by academic institutions, educators, and parents to enable and personalize learning, deliver instruction and content, facilitate collaboration and feedback, and provide visibility into students' academic work.

Canvas Studio is used by educators and students to create and submit video content.

Canvas Catalog provides Academic Institutions with an online marketplace to showcase and sell courses, programs, and certifications.

Canvas Student ePortfolios is used by students to showcase their achievements to potential employers and fellow students, and connect with other users, such as employers, professionals, and other students.

Canvas Certified Educator Program is used to learn best practices for teaching with Canvas.

Canvas Career is used by employees, businesses, governments, and continuing education organizations to create learning programs, track progress, and measure impact and return on investment.

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Mastery

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Mastery Connect, Mastery Item Bank, Mastery Item Bank Supplemental, Mastery College Prep Assessments, Mastery View Predictive Assessments, Mastery Predictive Assessments, Mastery View Formative Assessments

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K-12, For Our Partners

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Educators, School Districts

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Mastery Connect is used by educators to assess their students and plan curriculum.

Mastery Item Bank is used by educators to access a large library of rigorously vetted, standards-aligned assessment items, enabling them to create accurate, fair, and instructionally relevant assessments.

Mastery Item Bank Supplemental is used by educators to access additional rigorous, standards-aligned items that support the creation of targeted follow-up formative assessments alongside existing Mastery tools.

Mastery College Prep Assessments is used by school districts to prepare students for the ACT by providing ACT-aligned practice with realistic structure, timely feedback, and diagnostic data to monitor progress and support college and career readiness.

Mastery View Predictive Assessments are used by educators to measure academic progress and generate timely data that informs instruction, supports targeted interventions, and enables personalized learning.

Mastery Predictive Assessments are used by educators to measure student progress and predict end-of-year performance on state summative assessments through rigorous, standards-aligned benchmark assessments.

Mastery View Formative Assessments are used by educators to more effectively meet student learning needs by offering a real-time actionable view into mastery of standards.

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LearnPlatform

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LearnPlatform EdTech Effectiveness, LearnPlatform SEA, LearnPlatform Evidence as a Service

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K-12, For Our Partners

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Academic Institutions, State Educational Agencies, School Districts, Technology Providers

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EdTech Effectiveness is used by K–12 schools to track and evaluate edtech usage, ensure compliance, and optimize their technology investments.

LearnPlatform EaaS (Evidence as a Service) is used by edtech providers to generate high-quality, third-party research that demonstrates impact and supports adoption.

LearnPlatform SEA is used by state and regional education agencies to aggregate district edtech data, improve compliance, and streamline communication around tools.

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Elevate

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Elevate K-12 Analytics, Elevate Data Quality, Elevate Standards Alignment, Elevate Data Sync

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K-12, For Our Partners

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Academic Institutions, Educators, Technology Providers

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Elevate K-12 Analytics is used by Academic Institutions to provide integrated data, so they understand what is affecting student success.

Elevate Data Quality is used by Academic Institutions to ensure their data is up-to-date and accurate.

Elevate Standards Alignment is used by educators to tag, align, and manage content.

Elevate Data Sync is used by Academic Institutions and Technology Providers to share learning data between applications.

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Impact

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Impact

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K-12, Higher Education, Business and Government

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Academic Institutions

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Impact is used by academic institutions to evaluate the effectiveness of technology on student engagement and outcomes and to inform district-wide technology adoption decisions.

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Information Collection.

Now that you know about our Products, we want to tell you about the information our Products collect and process, which may include the following:

Category

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Information that may be collected

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When it is collected

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Personal Information

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First and last name; gender or preferred pronouns; email address; academic institution or company; username and password; geographic information such as location; profile information such as a short bio or profile photo; phone or mobile number; payment card information (Canvas Catalog only); imported profile information from third-party websites if you choose to register or log in with those credentials; information from academic institutions to register your profile, such as student ID number; content from in-application messages or discussion group comments; date of birth (Portfolium, Mastery Connect, and Elevate only); submitted content such as research papers or class assignments; data types described in the Ed-Fi Data Standard (Elevate only); subject- and grade-level interests; student demographic information; student achievement data used to produce evidence-based reports and dashboards on product effectiveness; video images and voice recordings

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When you create or use an account; when an academic institution creates an account for you; when you import information from third-party websites or sources such as social media; when another academic institution, company, or user invites you to join a product; and when an academic institution transfers information from student information systems or other institutional systems into the products

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Product Usage Information

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Your interactions with other users, including messages, comments, and uploaded files; product performance information, such as how you use certain features; descriptions, images, hashtags, and other information associated with uploaded content; and usage details such as time spent using features and the date and time of visits

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When you use the products, information is collected about how you use them

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Communications and Other Interactions with Us and Other Users

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Information you submit in communications and interactions, including contact information, email or chat content, reviews, and other content posted on the products

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When you request help desk assistance; use chatbot features; provide feedback; sign up for or attend a conference, webinar, or other Instructure event; participate in surveys or contests; post a review or other content; or otherwise communicate or interact with us

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Device Information

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Browser type, language, settings, and preferences; device type; operating system; location information such as country or state; persistent identifiers; IP address; domain name; unique device identifiers; and other information collected through cookies and similar technology

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Automatically collected each time you use the products on a device

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Professional Information

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Career and professional achievement information, such as information required by an employer, which may include personal information like a resume; job descriptions and requirements; and information such as a customer relationship management ID, manager or leader name, job title, and department

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For example, when you apply for a job posted on student ePortfolios and activate an account created by your academic institution; also collected on Canvas Career

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Log Files

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IP address; device type; operating system; browser type; usage data; general location data; identifiers

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Automatically collected each time you use the products on a device

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Our Use of Your Information.

Now that you've learned about the information we process, let's go over what we do with it.

Please note that if we process personal information we collect for a purpose other than the purpose for which it was collected, we will provide you with notice in advance of the new processing and obtain consent if required. We limit our collection and use of personal information to those elements required to operate our Products, or as otherwise disclosed in this Privacy Notice. We do not engage in automatic decision making, advertising to students, or profiling.

To provide, analyze, and improve our Products. We use the information described above to provide, analyze, and improve our Products, including to:

Create and maintain your account.

Identify you as a user.

Notate and assign support tickets.

Provide, operate, maintain, and improve our Products.

Personalize and improve your experience.

Contact you and communicate with you, including to respond to your comments or inquiries.

Provide customer support.

Solicit feedback about our Products, including by asking you to respond to surveys or questionnaires (with your permission).

De-identified or aggregate use. We may create and use de-identified or aggregate information, that is information removed of specific identifiers so that it cannot singly identify you (i.e., non-personal information) for any purpose.

Troubleshooting, security and fraud detection, and performance monitoring. We use information captured in log files for these purposes. Instructure owns the security logs maintained for its Products and acts as a controller of information contained in such logs.

We may offer interactive features, including the ability to submit reviews that are posted on our platforms for others to see and use, engage with AI-powered chatbots and other tools that provide customer and/or user support or to interact with a translation tool to help us communicate in your preferred language. If you disclose information through an interactive feature, this information can be viewed, collected, recorded, and used by others, including other users or any vendors that power the feature. For more information about our use of AI tools, please see our Artificial Intelligence Privacy Notice.

Disclosure of Information.

Now we will review how we share or disclose information, including personal information.

A. Instructure's Disclosure of Information.

Instructure may share information, including with the following recipients:

Commonly owned entities. We may share information collected about you with companies under common ownership or control of Instructure, including affiliates and subsidiaries, to help provide our Products.

Third-party service providers. We may share personal information collected about you with authorized third-party service providers for the sole purpose of providing you with our Products. We do not permit our third-party service providers to use personal information we share with them for their own advertising or marketing purposes, or for any other purpose other than in connection with the services they provide to Instructure. Additionally, we do not sell or rent personal information to third parties.

Google APIs. Our use of information received from Google APIs will adhere to Google's Limited Use Requirements. Our Product's use and transfer to any other application of information received from Google APIs will adhere to Google API Services User Data Policy(opens in a new tab), including the Limited Use requirements.

As required by law. In certain circumstances, we may be required to disclose information, including personal information, in order to:

Comply with legal or regulatory processes (such as a judicial proceeding, court order, or government inquiry).

Enforce the Instructure Acceptable Use Policy and other applicable policies.

Respond to claims that any content violates the rights of third parties.

Protect the rights, property, or personal safety of Instructure, its employees, its users, its clients, and the public.

Change of Control. We may share information about you in connection with or during negotiation of any merger, financing, acquisition, bankruptcy, dissolution, transaction or proceeding involving sale, transfer, divestiture or disclosure of all or a portion of our business or assets to another company. In the event that information is shared in this manner, notice will be posted on our website at www.instructure.com.

With your consent or at your direction. We may share information other than as described in this Privacy Notice with your consent, or at your specific direction, for example, if you choose to use the Products with social networking platforms (e.g., Facebook, YouTube, Twitter, etc.).

De-identified or aggregate use. We may share de-identified or aggregate information, that is information removed of specific identifiers so that it cannot singly identify you (i.e., non-personal information) for any purpose without limitation, unless prohibited by applicable law.

B. Disclosure of Information through Instructure's Products.

Our Products have features that share information (including personal information) with authorized third parties or that allow you to share information with third parties or the public. These disclosures are described below.

Academic Institutions, course providers, or parents. We may share personal information collected about you with the Academic Institution or company which is linked to your use of our Products. Where permitted, we may also share information with relevant parties associated with the Academic Institution, such as educators or fellow students, or parents of students using our Products or fellow users.

For example, this would apply:

If your Academic Institution uses our Products as a learning management platform and has given you access to the Products; or

If you are taking a course via the Products, we will share personal information you provided upon account registration and coursework registration with the educator and/or Academic Institution

Other Third Parties or Users. You may choose to share information through our Products, with other users of the Products or the public when you post content or otherwise provide information about yourself. We are not responsible for others' use of the available information, so you should carefully consider whether and what to post or how you identify yourself.

With your consent or at your direction. As noted, we may share information other than as described in this Privacy Notice with your consent, or at your specific direction, for example, if you choose to use the Products with social networking platforms (e.g., Facebook, YouTube, Twitter, etc.).

YouTube API: Our Product integration with the YouTube API Service allows our customers to utilize certain YouTube services directly in our Products. For example, educators and students can search publicly available YouTube videos, and embed videos into course materials. These services are only available if enabled by your Academic Institution. The YouTube API Service does not process any of your personal information. For more information about the YouTube API Service, please refer to YouTube's Terms of Service (opens in a new tab). You can learn more about how YouTube uses your personal information in the Google Privacy Policy (opens in a new tab).

Children's Privacy.

For users of Canvas LMS and the Mastery suite of products, we may take steps intended to comply with the Children's Online Privacy Protection Act ("COPPA"). Please see our Children's Online Privacy Protection Act Privacy Notice.

Except for authorized users of Canvas LMS, Canvas Studio, Canvas Student Pathways, or the suite of Mastery products, if you learn that a child under thirteen years of age has provided us with personal information, please alert us at privacy@instructure.com.

Your Decisions About Information Collected by Us.

We provide you with several ways to control information collected from you.

Parents and Academic Institutions. Parents and educators may review information collected from children, request deletion of this information, or request no further collection or use of this information by contacting us at privacy@instructure.com or submitting a help desk ticket through our Products.

Account Information. You may change some personal information by editing your Product profile. You may also request that we modify or delete information by emailing us at privacy@instructure.com or submitting a help desk ticket through our Products. We will respond to your request, when permitted by law and subject to exceptions, within 30 days. We may be unable to delete information that resides in our archives.

Push Notifications. If you would like to stop receiving push notifications, please use the settings on your mobile device to opt out. Please note that opting out of receiving push notifications may impact your use of our Products (such as receiving a notification that you have a new message). Please note that the opt-out process differs depending on the mobile device you are using.

Location. Some Products may collect precise location information about your mobile device, but only with your consent. If you wish to revoke permission to collect precise location information, you can change the location settings on your mobile device.

If you require access to personal information not otherwise available through any of the mechanisms described above, please contact us at privacy@instructure.com or submit a help desk ticket through our Products.

Other Important Information.

Third-Party Websites. Our Products may contain links to third-party websites or services that allow you to leave our Products and go to another website when you click on such a link. Personal information may be collected by those separate entities. We have no control over, do not review, and cannot be responsible for these outside websites or their content.

Please be aware that the terms of this Privacy Notice do not apply to these outside websites or content, or to any collection of data after you click on links to such outside websites. The links to third-party websites or locations are for your convenience and do not signify our endorsement of such third parties or their products, content, or websites.

Security

Instructure takes reasonable steps to help protect personal information collected about you in an effort to prevent unauthorized access, use, or disclosure.

You can find more details about our security program by visiting our security webpage at https://www.instructure.com/trust-center and reviewing our Security and Due Diligence Documents.

Despite these measures, you should know that we cannot fully eliminate security risks associated with personal information. No method of transmission over the Internet, or method of electronic storage, is 100% secure. Therefore, we cannot guarantee absolute security. Any content you post or input you provide while using our Products is at your own risk.

Please be aware that the personal information we collect may be transferred to and maintained on servers or databases located outside your county, and personal information may be accessible to law enforcement and national security authorities in those jurisdictions.

Data Privacy Framework.

Instructure (which includes Parchment) complies with the EU-U.S. Data Privacy Framework (“EU-U.S. DPF”), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (“Swiss-U.S. DPF”) as set forth by the U.S. Department of Commerce. Instructure and Parchment have certified to the U.S. Department of Commerce that they adhere to the EU-U.S. Data Privacy Framework Principles (“EU-U.S. DPF Principles”) with regard to the processing of personal data received from the European Union in reliance on the EU-U.S. DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-U.S. DPF. Instructure has certified to the U.S. Department of Commerce that it adheres to the Swiss-U.S. Data Privacy Framework Principles (“Swiss-U.S. DPF Principles”) with regard to the processing of personal data received from Switzerland in reliance on the Swiss-U.S. DPF. If there is any conflict between the terms in this privacy policy and the EU-U.S. DPF Principles and/or the Swiss-U.S. DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework (“DPF”) program, and to view our certification, please visit https://www.dataprivacyframework.gov/(opens in a new tab).

Instructure (which includes Parchment) commits to subject to the DPF Principles all personal data received from the EU, UK, and Switzerland in reliance on the relevant DPF.

Instructure is accountable for the processing of personal data it receives under the EU-U.S. DPF Principles, the UK extension to the EU-US DPF Principles, and the Swiss-U.S. DPF Principles (collectively, “DPF Principles”) and subsequently transfers to a third party. Instructure complies with the DPF Principles for all onward transfers of personal data from the EU, UK, and Switzerland, including the onward transfer liability provisions. The Federal Trade Commission has jurisdiction over Instructure’s compliance with the EU-U.S. DPF, UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF.

Instructure may be required to disclose personal data in response to law requests by public authorities, including to meet national security and law enforcement requirements.

Residents of the EU, UK, and Switzerland have the right to access the personal data that Instructure maintains, and in some cases, have choices to limit the use and disclosure of personal data. These rights are described more fully in Product Privacy Policy: the Your Rights section of the European Union Region Product Privacy Notice Addendum. To exercise these rights, contact us at privacy@instructure.com.

In compliance with the EU-U.S. DPF, UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF, Instructure commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK, and

Swiss, individuals with inquiries or complaints regarding our handling of personal data received in reliance on the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF should first contact Instructure as described in the “Contact Information” in Section 10 below.

In compliance with the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF, Instructure commits to refer unresolved complaints concerning our handling of personal data received in reliance on the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF to TRUSTe, an alternative dispute resolution provider based in the United States. If you do not receive timely acknowledgment of your DPF Principles-related complaint from us, or if we have not addressed your DPF Principles-related complaint to your satisfaction, please visit https://feedback-form.truste.com/watchdog/request(opens in a new tab) for more information or to file a complaint. The services of TRUSTe are provided at no cost to you. Under certain conditions, more fully described on the DPF website, you may be entitled to invoke binding arbitration when other dispute resolution procedures have been exhausted.

Contact Us

Instructure welcomes your comments or questions regarding this Privacy Notice. Please email us at privacy@instructure.com, or contact us at the following address, or phone number.

Instructure, Inc.

6330 S 3000 E, Suite 700

Salt Lake City, UT 84121

United States of America

Phone: +1 (800) 203-6755

Instructure Global Ltd.

Birchin Court, 5th Floor

19-25 Birchin Lane

London EC3V 9DU

United Kingdom

To contact our Data Protection Officer, please use the following email address privacy@instructure.com

Changes to this Privacy Notice.

We may change this Privacy Notice from time to time. If we make any changes to this Notice, we will change the “Effective Date” above. If such changes are material, a notice of the changes will be posted along with the revised Privacy Notice. We encourage you to visit this page from time to time for the latest on our privacy practices.

Previous Versions

Access the previous version of our Product Privacy Notice.

Support

You may contact us at anytime with questions by emailing us at privacy@instructure.com

Previous Versions

Access the previous version of our Product Privacy Notice.

03 | Privacy

https://www.instructure.com/privacy-security

Webpage text snapshot | Retrieved 10 October 2026

Privacy

At Instructure, we're committed to privacy.

We protect the information we receive by ensuring it's used only to support students, institutions, and education. Five key principles guide our approach: transparency, accountability, integrity, security, and confidentiality.

A CLOSER LOOK

How We Uphold Our Promise

Students & Parents

Get answers to common questions about our privacy practices within Canvas.

Learn More

Institutions & Educators

Get answers to all your data use, access, and privacy practice questions.

Learn More

Instructure Product Privacy Policy

We remain committed to protecting your privacy. We have prepared this Privacy Policy to describe our practices regarding the information processed by our products and any other Instructure products.

Learn More

Marketing Privacy Policy

We promote privacy standards not just for users of our products, but for visitors to our website–you’re one of them! See the privacy policy that applies to our website(s).

Learn More

Instructure COPPA Privacy Policy

We value the privacy of children. Read our COPPA Privacy Policy as it serves as our online notice under the Children’s Online Privacy Protection Act (“COPPA”).

Learn More

The Instructure Privacy Notice Center

Access up-to-date privacy notices for all of our products, in all regions, to see how we collect and process the data provided to us by our customers.

View privacy notices

Learn more about our approach to privacy

Data and Privacy: Our Current and Future Commitment

We care about the safety and security of all students, educators, and schools we support. Our commitment to privacy remains strong, though our knowledge and practices grow.

Read the post

Our Foundation of Privacy

Instructure protects personal information and is constantly working to keep it secure. We never sell it, and we use it only to support your use of our products.

Read the post

Our 5 Guiding Principles

Learn how transparency, accountability, integrity, security, and confidentiality shape our work.

Read the post

04 | View Trust Center

https://trust.instructure.com/

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Badges

SOC 2 Type II

PCI

ISO 27001

GDPR

SOC 3

CSA

Cyber Essentials Plus

HECVAT

EU-US DPF

VPAT

TX-RAMP

Quick Summary

One or more annual third-party audit(s)

Annual third-party penetration testing

Has a disaster recovery plan

Subprocessors list available

Has cyber insurance

Will enter into a DPA

Has a bug bounty or vulnerability disclosure program

Deletes customer data on request

Has an API available

Uses a centralized IAM solution (SSO) to manage employee access

Has a status page

Has a privacy policy

Announcements

Sep 21, 2026, 23:28 UTC

New Canvas SOC 2 report

Our Canvas SOC 2 report has been refreshed! Our SOC reports for our other products will be updated soon, but for customers who want the Canvas report hot off the press, it's now available in our Trust Center. Note, our SOC Reports require you to be an approved visitor for access.

Jun 10, 2026, 12:55 UTC

Instructure SOC 2 Bridge Letter

Instructure now has a SOC 2 Bridge Letter available on our Trust Center, providing coverage between our most recent SOC 2 reporting period and the present date.

May 8, 2026, 12:55 UTC

Update on a Security Incident

For an update on a security incident, please see our incident update FAQ

Dec 9, 2025, 13:55 UTC

React Server Components Vulnerability

Following the disclosure of CVE-2025-55182 and CVE-2025-66478, we immediately patched a limited number of affected services. No compromise was detected, and security monitoring remains active.

Sep 25, 2025, 12:55 UTC

Update on a Security Incident

For an update on a security incident, please see our blog post.

Jul 7, 2025, 12:55 UTC

VPAT Product Refresh

Several of our Product Voluntary Product Accessibility Templates (VPAT) have been refreshed and now meet the AA level of the Web Content Accessibility Guidelines (WCAG) 2.2 accessibility standards.

Jun 25, 2025, 12:55 UTC

PCI DSS Attestation of Compliance refresh

Both our Canvas Catalog PCI DSS and our Parchment PCI DSS have been refreshed! This also includes a Responsibility Matrix for both platforms. Note, these documents require you to be an approved visitor for access.

Jun 5, 2025, 12:55 UTC

Canvas LMS HECVAT v4

We've just refreshed our Canvas LMS HECVAT to Version 4. This refreshed HECVAT includes a comprehensive section on both AI and Privacy. Our HECVATs are located under the Security Questionnaires folder in Documents.

Documents & Knowledge Base FAQs

Documents57

Knowledge Base FAQs972

Featured Documents

PCI DSS Attestation of Compliance - Catalog

Disaster Recovery Testing Attestation Letter

Catalog / Studio SOC 2 Report

PCI DSS AoC Merchants - Parchment

Parchment Award/Pathways SOC 2 Report

Instructure, Inc. Certificate of Insurance

Instructure Third-Party Service Provider Guide

pdf

Instructure Security Overview

pdf

Instructure ISO 27001 Compliance Certificate

pdf

Instructure Business Continuity & Disaster Recovery

pdf

Instructure AI Governance Overview

pdf

Canvas SOC 2 Report

Canvas, Studio, and Catalog HECVAT

xlsx

Canvas VPAT

pdf

Canvas LMS Penetration Test

Canvas Architecture Overview

pdf

Canvas Architecture Diagram

View all documents →

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Learn more

05 | Instructure COPPA Privacy | Policy

https://www.instructure.com/policies/coppa-privacy

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Instructure COPPA Privacy | Policy

Effective Date: April 01, 2021

Instructure, Inc. (“Instructure”) values the privacy of children. This COPPA Privacy Policy (“COPPA Policy”) serves as our online notice under the Children’s Online Privacy Protection Act (“COPPA”) and contains important information about how we collect, use, and disclose the personal information we collect about Children who use our Services (defined below) that are directed to Children. In this policy, “Child” or “Children” means a user under 13 years old. This COPPA Policy also explains how a parent or guardian (“parent” or “you”) can restrict the collection, use and/or disclosure of your Child’s information and how you can request deletion of your Child’s information.

Instructure’s Services

This COPPA Policy applies to Child users of Canvas, a learning management system that schools, including administrators and teacher end users (collectively, “Schools”), use to facilitate learning outcomes. In some instances, other services provided by Instructure, including Portfolium and MasteryConnect, are bundled into Canvas, and in these instances this COPPA Policy will also apply to the bundled services. These services also may be offered through companion mobile applications (“Apps”). This COPPA Policy refers to all of these Instructure services collectively as the “Services”.

This COPPA Policy does not apply to:

Any personal information we collect about non-Child users (e.g., students over 13 years old, teachers, and parents) through our Services or any personal information we collect through other Instructure services that are not directed to Children, including Portfolium and MasteryConnect (when not bundled into Canvas). All such personal information is subject to the Instructure Product Privacy Policy, available here.

Our corporate website, www.instructure.com (“Site”), which is subject to the Instructure Marketing Privacy Policy, available here.

To use the Services, Schools may submit personal information about their students or ask Students to provide personal information to the Services. When a School uses our Services in the classroom or an educational setting, the School provides consent to this collection and use of personal information from and about Children as required under applicable laws, including COPPA.

Who Operates the Services?

Instructure operates the Services and will collect personal information about Children as described in this COPPA Policy. We can be contacted at:

Instructure, Inc.

6330 S. 3000 E.

Cottonwood Heights, UT 84121

1-800-203-6755

privacy@instructure.com

What Information Do We Collect About Children?

How Information is Collected. We may collect information about Children directly from Children and/or their Schools, as well as automatically through a Child's use of our Services. We will not require a School or Child to disclose more information than is reasonably necessary to use our Services.

Information We Collect Directly. We may collect a Child’s name and other personal information when a School provides it to us. For example, through our Services, Schools can create assessments and track their Students’ learning progress. In doing so, Schools may require the Child’s personal information in order to track and archive evidence of

learning. Schools decide how they will use our Services and Schools are responsible for ensuring that their collection and use of personal information from Children through the Services complies with applicable laws. If you are a parent and you have questions about your Child's School's use of our Services, you should discuss your questions with your Child's School.

Schools also have the option of creating accounts for their Students which allows those Students to view their learning progress and access learning resources provided by their School. If a School chooses to register a Child for an account, Canvas will generate a username and temporary password and provide them directly to the School which may then share them with the Child. After logging in, the Child can then create a permanent password for their account.

Once an account is created, we collect information about Children's performance and activities on our Services. We may use deidentified or aggregated data in order to improve our services.

Parents can tell us to stop collecting personal information from their Children; however, in such cases the Children will not be able to use our Services. If you direct us to stop collecting and using your Child's personal information, we will notify the School of your request and disable your Child's use of our Services.

Information We Collect Automatically. We may automatically collect information about a Child's use of our Services through our servers and in log files, such as the following: domain name; browser type and operating system; web pages viewed; links clicked; the length of time spent on our Services; the length of time our Services are used; the referring URL, or the webpage that led a user to our Site; language information; device name and model; operating system type, name, and version; and activities within our Services. We use this information to analyze trends, administer the Services, track users' movements around the Services, gather demographic information about our user base, and better tailor our Services to our users' needs. Except as noted in this COPPA Policy, we do not link this automatically collected data to a Child's personal information.

We may also collect IP address, device identifier or a similar unique identifier from Child users of our Services; we use such identifiers solely to support the internal operations of our Services in the same manner as described above, including to maintain or analyze their functioning; perform network communications; authenticate users or personalize content; and protect the security or integrity of users and our Services. We never use unique identifiers to track Child users across third-party apps or websites.

We may also collect information from any mobile devices that a Child uses if the Child has downloaded one or more of our Apps to their device. This information is used to help us deliver the Services to the Child. Examples of information that may be collected and used include how the Child uses the App(s) and information about the type of device the Child is using. In addition, in the event our App(s) crash on a mobile device, we will receive information about the mobile device model software version and device carrier, which allows us to identify and fix bugs and otherwise improve the performance of our App(s). This crash information is sent to us as aggregated information that does not identify an individual.

How We Use Children's Information

We use personal information about Children to provide the Services. We do not use personal information about Children for our own commercial purposes.

For the Services. We use the personal information that we collect about Children for the following general purposes:

To provide our Services;

To respond to customer service and technical support issues and requests;

To identify the Child as a user in our system;

To improve our Services; and

To tailor the content and information that we may display to Children, to offer personalized help and instructions, or to otherwise personalize a Child's experiences while using the Services.

As Requested by Schools. When a School provides a Child's name and other personal information, we use that personal information for the following additional purposes:

To provide Children and Schools with information and reports about a Child's performance and use of the Services; and

If requested, to facilitate creation of a Child's account.

Aggregate or De-identified Information. We may use aggregate or de-identified information about Children for research, analysis, and similar purposes. When we do so, we strip out names, email, contact information, and other personal identifiers. For example, we may use aggregate or de-identified information for one or more of the following purposes, among other purposes:

To better understand how users access and use our Services;

To improve our Services and respond to user desires and preferences; and

For other research and analytical purposes.

How We Share Children's Information

We do not sell personal information about Children, and there is no means for a Child to make his or her personal information public through our Services (though Schools may choose to share a Child's information and responses with the Child's classmates or with other teachers). We will disclose the personal information that we collect about Children only as follows:

Parents, Teachers and Classmates. We will disclose Children's personal information: (1) to each Child's individual teacher(s) and parent(s); and (2) as directed by the Child's School. Parents may request information about the information we have collected from their Child(ren) by contacting us atprivacy@instructure.com.

Third-Party Service Providers. We may disclose a Child's personal information to third-party service providers who perform functions on our behalf and/or on behalf of a School or district customer in order to: provide the Child and the Child's School with the Services that we offer through our Services; conduct quality assurance testing; facilitate creation of accounts; provide technical support; and/or provide other services to us. These third-party service providers are permitted to use personal information only to provide the services requested by Instructure or the School or district customer.

Business Transfers. If we are acquired by or merged with another company, if all or a portion of our assets are transferred to another company, or as part of a bankruptcy proceeding, we may transfer the personal information we have collected about Children to the other company. We will notify all users of any material change in our information practices, as well as any choices users may have regarding their personal information.

In Response to Legal Process. We may disclose personal information that we have collected from Children in order to comply with applicable law, a judicial proceeding, court order, or other legal process.

To Protect Us and Others. We may disclose personal information that we have collected from Children where we believe it is necessary to investigate, prevent, or take action regarding illegal activities, suspected fraud, situations involving potential threats to the safety of any person, violations of our Terms of Service or our policies including this COPPA Policy, or as evidence in litigation in which Instructure is involved.

Disclosure to Other Third Parties Only with Consent. Beyond the disclosures described in this COPPA Privacy Policy, Instructure will disclose a Child's information to any other third party only at a School's direction.

Our Use of Cookies

We use cookies and similar technologies to collect personal information about a Child's use of our Services. "Cookies" are alphanumeric identifiers that we transfer to a computer's hard drive through a web browser for record-keeping purposes. We may use both session Cookies (which expire once a user closes a web browser) and persistent Cookies (which stay on a computer until a user deletes them). Some Cookies make it easier for a Child to navigate our Site and Services, while others are used to enable a faster log-in process or to allow us to track a Child's activities on our Services for operational purposes.

Third-Party Analytics. We may also use third-party analytics tools and technologies, such as Google Analytics, to track and analyze data from our Site, Apps, or Services. These tools use Cookies and similar technologies to collect information such as how often users visit the Site, what pages they visit, and what other sites they used prior to coming to the Site. We use the data collected by such third-party analytics tools only to help us administer and improve the quality of our Site, Apps, and Services and to analyze Site and Apps usage. These third parties are not permitted to use the information collected on our Services, except to help us conduct and improve our business. Google's ability to use and share information collected by Google Analytics about a user's visits to the Site is restricted by the Google Analytics Terms of Use and the Google Privacy Policy. For more information on Google's privacy practices, please click here. For information about how to opt out of Google Analytics, please click here.

Third-Party Links

Schools may provide Children with links to third-party educational and learning resources located on third-party websites or apps, through our Services. Any access to and use of such linked websites and apps is not governed by this COPPA Policy, but instead is governed by the privacy policies of those third-party websites and apps. We are not responsible for the information practices of such third-party websites and apps.

Rights to Review, Delete, and Control Our Use of Children’s Personal Information

Parents and Schools have a right to review and correct the information we have collected about their Child(ren) and Students, respectively, and to delete it, and to tell us to update it or stop using it. To exercise these rights, you may contact us atprivacy@instructure.com. You will be required to authenticate yourself as the Child's parent or School to receive information about that Child. Please note that we cannot delete copies of information that a Child's School has already collected and/or copied, and copies of information that you have deleted may remain in archives for a period of time.

Changes to this COPPA Policy

This COPPA Policy is current as of the effective date set forth above. We may change this COPPA Policy from time to time, so please be sure to check back periodically. If we make any changes to this COPPA Policy that materially affect our practices with regard to the personal information we have previously collected from a Child, we will provide your Child’s School with notice of the revised COPPA Policy and request renewed consent in advance of such change becoming effective. The revised COPPA Policy will also be posted and highlighted on our Site

06 | Data Processing Addendum | Policy | Instructure

https://www.instructure.com/policies/data-processing-addendum

Webpage text snapshot | Retrieved 10 October 2026

Data Processing Addendum | Policy

Last Updated: 01 October 2024

To see the previous version of the DPA please view here. If the Customer has signed an agreement with Instructure prior to 01 October 2024, the DPA dated December 21st 2022, shall apply. For any agreements signed on, or after 01 October 2024, this DPA shall apply.

This Instructure Global Data Processing Addendum ("DPA") forms part of the Agreement between Customer (as defined below) and Instructure, Inc., (or its Affiliates, collectively "Instructure") (each a "Party", collectively "Parties").

The Parties hereby agree that this DPA shall be added as an addendum to the Agreement (defined below in Section 1). In case of any discrepancy or conflict between this DPA and the Agreement, this DPA shall prevail regarding the subject matter herein. Any capitalized terms not defined herein shall have the meanings set forth in the Agreement.

How this DPA Applies: This DPA consists of two parts - the main body of the DPA and the Schedules. The Schedules apply as described in each Schedule.

Schedule 1 – Data Processing Schedule

Schedule 2 – U.S. K-12 & Higher Education Addendum

Schedule 3 – EEA & UK Addendum

Schedule 4 – Jurisdiction Specific Addendum

Schedule 5 – LearnPlatform Research Services Customer Addendum

Definitions. In this DPA, the following terms shall have the meanings set out below:

"Affiliate(s)" means any entity which is controlled by, controls, or is in common control with a Party.

"Agreement" means the Instructure Services Order Form, Instructure Standard Terms and Conditions, or other written or electronic agreement in effect between the Parties.

"Account Data" means the Personal Data of Customer employees, personnel, contractors, business contacts, and/or agents that relates to Customer's relationship with Instructure, including without limitation the names or contact information of such individuals authorized by Customer to access Customer's account for or on behalf of Customer, and contact and billing information of individuals that Customer has associated with its account. Account Data also includes without limitation any Personal Data Instructure may need to Process to perform support services, or as part of its legal obligation to retain records.

"Customer" means the entity that signed an Agreement with Instructure.

"Customer Personal Data" means Personal Data provided by or on behalf of Customer to be Processed by Instructure as a Processor in connection with providing the Services and excludes Account Data.

"Controller" means the entity which determines the purposes and means of the Processing of Personal Data.

"Processor" means the entity which Processes Personal Data on behalf of a Controller.

"Data Protection Laws" means the laws and regulations which are applicable to the Processing of Personal Data under the Agreement.

"Data Subject" means an individual whose Personal Data is being processed by Instructure under the Agreement.

"Data Subject Request" means a request from or on behalf of a Data Subject to exercise its rights granted to a Data Subject under Data Protection Laws

"De-Identified Data" and "De-Identification" means data and information where all Personal Data has been removed or obscured, such that the remaining information does not reasonably identify a specific individual, including, but not limited to, any information that, alone or in combination is linkable to a specific Data Subject.

“Personal Data” means any information relating to an identified or reasonably identifiable person.

“Processing” means any operation or set of operations which is performed upon Personal Data, whether or not by automatic means, such as collection, recording, organization, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, blocking, erasure or destruction (“Process”, “Processes” and “Processed” shall have the same meaning).

“Sell,” “Selling,” “Sale,” and “Sold” shall have the meanings provided under Data Protection Laws.

“Security Breach” means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Customer Personal Data transmitted, stored, or otherwise processed by Instructure.

“Services” means Instructure’s proprietary software as a service offering(s) made available through a URL in a hosted environment made available by or on behalf of Instructure to Customer and identified in the Agreement.

“Sub-processor(s)” means any third-party processing Customer Personal Data for or on behalf of Instructure.

Term and Termination. This DPA is effective upon the signature date on the Agreement by the Customer and shall remain in effect until the Agreement is terminated, or until Instructure deletes all Customer Personal Data.

Processing Of Personal Data.

Instructure as Processor for Customer Personal Data. The Parties agree that with regard to the Processing of Customer Personal Data, Customer is the Controller and Instructure is the Processor. The objective of Processing of Customer Personal Data by Instructure as Processor is the performance of the Services pursuant to the Agreement. Instructure shall only Process Customer Personal Data on behalf of and in accordance with the Agreement and Customer’s written instructions unless required to do so by law to which Instructure is subject; in such case Instructure shall inform the Customer of that legal requirement before processing, unless that law prohibits such notification. Instructure shall comply with applicable Data Protection Laws, including, where required by such laws, by providing the same level of privacy protection required of Customer under such laws. As between Instructure and Customer, Customer retains all ownership of Customer Personal Data.

Customer Instructions. Customer instructs Instructure to Process Customer Personal Data for the following purposes: (a) Processing in accordance with the Agreement and Data Protection Laws; and (b) Processing to comply with other reasonable instructions provided by Customer where such instructions are consistent with the terms of the Agreement and Data Protection Laws. Instructure shall promptly notify Customer in the event Instructure determines that any Customer instructions violate Data Protection Laws. If Instructure determines that it can no longer comply with Data Protection Laws, Instructure will promptly notify Customer.

Consents for the Processing of Customer Personal Data. Customer represents, warrants, and covenants that it has complied with all applicable Data Protection Laws, including without limitation providing all notices and obtaining all consents and rights necessary under applicable Data Protection Laws for Instructure to Process any Customer Personal Data in its’s provision of the Services. In the event Customer determines that the foregoing representation, warranty and covenant is untrue with respect to any Customer Personal Data, Customer will promptly notify Instructure. Unless prohibited by applicable laws, Customer shall indemnify Instructure from and against all claims, directly resulting from any material breach of this Section 3.3 by Customer, its employees, agents, contractors, Sub-processors, or subcontractors. A breach of this Section 3.3 shall be considered a material breach of this DPA.

Instructure as a Controller for Account Data. The Parties agree that with regard to the processing of Account Data, Customer and Instructure are both independent Controllers (and not joint Controllers). Instructure will process Account Data as a Controller in order to (a) manage and administer the relationship with Customer; (b) carry out Instructure’s business operations, such as and without limitation, billing, accounting, and filing taxes; (c) detect, prevent, or investigate security incidents, fraud, and other abuse or misuse of the Services; (d) provide end-user support services; (e) comply with Instructure’s legal or regulatory obligations; (f) exercise its rights and carry out its obligations under the Agreement; (g) improve, troubleshoot, and market its products and services; and (h) as otherwise permitted under applicable Data Protection Laws and in accordance with this DPA, the Agreement, and the Instructure Product Privacy Notice.

No Sale. Instructure shall not Sell, or share for targeted advertising purposes, Customer Personal Data except as expressly instructed by Customer. Instructure shall not combine Customer Personal Data with other Personal Data

except as permitted under Data Protection Laws. Instructure shall not collect, retain, use, or otherwise disclose Customer Personal Data outside of the direct business relationship with Customer, and shall only Process Customer Personal Data for limited and specified purposes consistent with this DPA and the Agreement.

Customer Obligations. Customer shall, in its use or receipt of the Services, Process Customer Personal Data and Account Data in accordance with applicable Data Protection Laws and Customer will ensure that its instructions for the Processing of Customer Personal Data comply with applicable Data Protection Laws. Customer shall have sole responsibility for the accuracy, quality, and legality of Customer Personal Data and Account Data; the means by which Customer obtained the Customer Personal Data and Account Data; and for fulfilling all requirements under Data Protection Laws necessary to make the Customer Personal Data and Account Data available to Instructure for Processing as provided herein and under the Agreement. Customer shall notify Instructure promptly of any known unauthorized access to the Services. Customer will assist Instructure in any efforts by Instructure to investigate and respond to any unauthorized access to the Services.

Jurisdiction Specific Terms. To the extent that Instructure Processes Personal Data originating from one of the jurisdictions listed in Schedule 4 (Jurisdiction Specific Terms), the terms specified in Schedule 4 (Jurisdiction Specific Terms) with respect to the applicable jurisdiction(s) apply in addition to the terms of this DPA.

Assistance To Customer and Data Subject Rights.

To the extent Customer in its use or receipt of the Services, does not have the ability to take steps required to comply with Data Protection Laws, including (a) fulfilling Data Subject Requests, and (b) implementing reasonable security designed to protect Customer Personal Data, Instructure will use commercially reasonable efforts to comply with reasonable requests by Customer to the extent required by the Data Protection Laws and Instructure is legally permitted to do so, taking into account the nature of the Processing of Customer Personal Data and the information available to Instructure.

Instructure shall to the extent legally permitted, promptly notify Customer if it receives a Data Subject Request. Instructure shall not respond to any Data Subject Request relating to Customer Personal Data without Customer’s prior written consent except to confirm that the request relates to Customer or as otherwise required by Data Protection Laws. Instructure shall provide Customer with commercially reasonable assistance in handling a Data Subject Request, to the extent (a) legally permitted, and (b) Customer does not have access to such Customer Personal Data through its use or receipt of the Services, taking into account the nature of the Processing of Customer Personal Data and the information available to Instructure.

Instructure shall, upon written notice, use reasonable efforts to permit Customer to take reasonable and appropriate steps to (a) stop and remediate unauthorized processing of Customer Personal Data upon notice of same, and (b) ensure that Instructure Processes Customer Personal Data in a manner consistent with Customer’s obligations under Data Protection Laws.

Instructure Personnel. Instructure shall use commercially reasonable efforts to ensure that its employees engaged in the Processing of Customer Personal Data are subject to either contractual or statutory obligations of confidentiality, and that access to Customer Personal Data is limited to those employees who require such access to perform the Services. Instructure shall ensure that its personnel engaged in the Processing of Customer Personal Data are informed of the confidential nature of the Customer Personal Data and have received appropriate training on their responsibilities. As required by Data Protection Laws, Instructure shall ensure that its employees have gone through appropriate back-ground checks prior to accessing Customer Personal Data. Instructure shall take commercially reasonably steps to ensure the reliability of any Instructure personnel engaged in the Processing of Customer Personal Data.

Sub-processors.

Except as permitted in this DPA or the Agreement Instructure shall not transfer or otherwise make available Customer Personal Data to any third-party without Customer's prior written authorization.

Customer gives its general authorization to Instructure to use Instructure Affiliates as Sub-processors, and Sub-processors in connection with the provision of the Services provided that; (a) Instructure shall ensure that obligations not materially less protective than those set out in this DPA are imposed on its Sub-processors; (b) Instructure shall be liable towards Customer for the acts and omissions of its Sub-processors as if, and to the same extent Instructure would be liable if performing the services of each Sub-processor directly under the terms of this DPA, unless otherwise set forth in the Agreement; and (c) Instructure shall provide the list of its Sub-processors either upon

request, or by giving a link to a website where the information about the Sub-processors is kept up-to-date.

Instructure shall inform Customer of any replacement or addition to its Sub-processors at least 30 days prior to such change. Customer may object to such changes (on reasonable grounds) by notifying Instructure in writing within 30 days after the receipt of Instructure's notice. Instructure shall not use the proposed Sub-processor to Process Customer Personal Data until reasonable steps have been taken to address Customer's objections and Customer has been provided with a reasonable written explanation of the steps taken.

Security; Audits; Data Protection Impact Assessments.

Security. Instructure shall maintain appropriate technical and organizational measures for the protection of security (including protection against unauthorized or unlawful Processing and against accidental or unlawful destruction, loss or alteration or damage, unauthorized disclosure of, or access to, Customer Personal Data or Account Data) confidentiality, and integrity of Customer Personal Data and Account Data as set forth in the Instructure security documentation. Instructure regularly monitors compliance with these measures. Instructure will not materially decrease the overall security of the Services during the term of the Agreement.

Audits. Customer will first use all reasonable efforts to satisfy Customer audit needs through (a) copies of Instructure's most recently completed SOC-2 Type II audit report, its public ISO 27001 certificate; (b) a summary of Instructure's operational practices related to data protection and security; (c) summary of the most recent annual penetration test; and (d) making Instructure's personnel reasonably available for security-related discussions.

No more than once annually, Customer may engage a mutually agreed upon third party to audit Instructure solely for the purposes of meeting its audit requirements pursuant to Data Protection Laws ("Audit") provided that, Customer or its third-party representatives are contractually bound by obligations of confidentiality for such Audit information. Customer must promptly provide Instructure with information regarding any non-compliance discovered during the Audit. To request an Audit, Customer must submit a detailed plan at least 3 weeks in advance of the proposed Audit date describing the proposed scope, duration, and start date of the Audit. Audit requests must be sent to security@Instructure.com with a copy to privacy@instructure.com. The Audit must be conducted during regular business hours, subject to Instructure's policies, and may not unreasonably interfere with Instructure's business activities. Customer is responsible for its own expenses in conducting an Audit.

If any such Audit requires the use of Instructure resources different from, or in addition to those required by Data Protection Laws, Customer shall reimburse Instructure for any time spent for an Audit at rates agreed to by the Parties. All reimbursement rates shall be reasonable, considering the resources expended by, or on behalf of Instructure.

Any Audit right under this Section 7.3 shall not require Instructure to disclose to Customer or its third- party auditors (a) any information of any other Instructure customer; (b) any internal accounting or financial information unless otherwise agreed to in writing; (c) any trade secret, and/or; (d) any information that could compromise the security of Instructure's systems or information, or cause Instructure to breach any applicable law or contractual obligation.

Data Protection Impact Assessments. Upon Customer's written request, Instructure shall provide Customer with reasonable cooperation and assistance needed to fulfill Customer's obligations under Data Protection Laws to carry out a data protection impact assessment or other mandated privacy assessment related to Customer's use of the Services to the extent that Customer does not otherwise have access to the relevant information, and to the extent such information is available to Instructure.

Restrictions on Receipt of Information. Nothing under this DPA shall require Instructure to disclose (a) any data or information of any other customer of Instructure, or any third party not directly involved in the provision of the Services; (b) any confidential accounting or financial information; (c) any trade secret of Instructure; or (d) any information that, in Instructure's reasonable opinion could (i) compromise the security of Instructure's networks, systems, or premises, (ii) cause Instructure to breach its security or privacy obligations to any third party, or (iii) any information sought for any reason other than the reasons outlined in this DPA. Instructure may require Customer's agreement to reasonable terms and conditions prior to providing audit reports under this DPA.

Security Breach Management and Notification. In the event of a Security Breach, Instructure shall; (a) notify Customer of the Security Breach without undue delay after becoming aware of the Security Breach and such notification shall include at least the information required by the Data Protection Laws; (b) investigate the Security Breach and provide Customer with information about the Security Breach; and (c) take commercially reasonable steps to mitigate the effects and to minimize any damage resulting from the Security Breach, and to allow Customer to take reasonable and appropriate

steps to do the same to the extent such steps are within Customer’s control. Instructure shall cooperate with Customer and with any third parties designated by Customer to respond to the Security Breach.

De-Identified Data: De-Identified Data may be used by the Instructure for those purposes allowed under Data Protection Law and the following purposes: (a) assisting the Customer or other governmental agencies in conducting research and other studies; and (b) research and development of the Instructure's educational sites, services, or applications, and to demonstrate or improve the effectiveness of the Services; and (c) for adaptive learning purpose and for customized student learning. Instructure's use of De-Identified Data shall survive termination of this DPA or any request by Customer to return or destroy Customer Personal Data. Instructure agrees (i) not to attempt to re-identify De-Identified Data, and (ii) not to transfer De-Identified Data to any party unless that party agrees in writing not to attempt re-identification.

Government Access Requests. If Instructure receives a legally binding request to access Customer Personal Data from a public authority, Instructure shall, unless otherwise legally prohibited, promptly notify Customer including a summary of the nature of the request. To the extent that Instructure is prohibited from providing such notification, Instructure shall use commercially reasonable efforts to obtain a waiver of the prohibition to enable Instructure to communicate with Customer. Instructure shall challenge such request if, after careful assessment, it concludes that there are reasonable grounds to consider such request unlawful. Instructure agrees to provide the minimum amount of information permissible when responding to a public authority request for disclosure based on a reasonable interpretation of the request. Instructure shall promptly notify Customer if Instructure becomes aware of any direct access by a public authority to Customer Personal Data and provide information available to Instructure in this respect to the extent permitted by law.

This DPA shall not require Instructure to pursue action or inaction that could result in civil or criminal penalty for Instructure such as contempt of court. Instructure certifies that (a) it has not purposefully created back doors or similar programming for the purpose of allowing access to the Services and/or Personal Data by any public authority, (b) it has not purposefully created or changed its business processes in a manner that facilitates access to the Services and/or Customer Personal Data by any public authority, and (c) as of the Effective Date is not currently aware of any national law or government policy requiring Instructure to create or maintain back doors, or to facilitate access to the Services and/or Customer Personal Data, or to handover any encryption key to any public authority.

Return And Deletion of Customer Personal Data. Within 90 days after termination or expiration of the Agreement, Instructure shall provide functionality for Customer to download its Customer Personal Data stored in the Services to the extent possible, or securely delete Customer Personal Data in accordance with Instructure’s data retention policies which adhere to requirements of the Data Protection Laws, and in a manner consistent with the terms of the Agreement.

Severance. Should any provision of this DPA be invalid or unenforceable, then the remainder of this DPA shall remain valid and in force. The invalid or unenforceable provision shall be either amended as necessary to ensure its validity and enforceability, while preserving the Parties’ intentions as closely as possible or, if this is not possible, construed in a manner as if the invalid or unenforceable part had never been contained therein.

Legal Effect. This DPA shall only become legally binding between the Customer and Instructure when both Parties sign the Agreement.

Limitation of Liability. To the extent permitted by Data Protection Laws, Customer’s remedies with respect to any breach by Instructure or its Affiliates of the terms of this DPA or Data Protection Laws will be subject to any aggregate limitation of liability that applies to Instructure and/or Customer under the Agreement.

Schedule 1 – Data Processing Schedule

Schedule of Data. The following Personal Data elements Processed by the Services are described below.

Services Name

Personal Data Elements

Canvas Learning Management System (including mobile apps)

Application username/ID & hashed password

Assessment results (e.g., 86%)

Avatar URL (if enabled by the Customer, e.g., URL of Avatar image)

Browser locale (e.g., en, browser language setting)

Calendar events (e.g., event location)

Comments (e.g., discussions, media comments, submissions)

Country (e.g., CAN)

Course content (e.g., Lesson #4, Syllabus)

Course results (e.g., B+)

Email address (e.g., John.Doe@awesomeu)

Enrollment status (end-users association with a specific course or section, e.g., Student or Teacher)

First and last name

IP Address (e.g., 127.0.0.1)

Locale (The end-user's locale. This is an optional field and may not be entered by the end-user, e.g., en - language selection)

Messages (e.g., notifications and course conversations)

Media content created by the user (e.g., images, voice recording, comments)

Phone number (if enabled by the customer, for SMS messages)

Pronouns (if enabled by the customer, preferred pronouns selected by the end-user, e.g., she/her)

Session ID

School Name

School Position (e.g., Student)

Short name (selected by the end-user, e.g., Sam)

Student Information System (SIS) Identification Number

SIS source ID (ID for the correlated record in the SIS if a SIS integration has been configured)

Submitted content (e.g., research paper, assignments)

Turnitin ID (unique identifier used by Turnitin)

Webconference data (participant ID, particpant comments, user ID. If enabled by the Customer)

Canvas Commons

Canvas LMS user ID/username & hashed password

Email address (e.g., John.Doe@awesomeu)

First and last name

IP Address (e.g., 127.0.0.1)

Messages/comments related to the learning object

Canvas Catalog

Account ID for the Customer

Application username/ID & hashed password

Canvas LMS user ID

Class completed date (e.g., March 4, 2000)

Credit card processing token via third party credit card processor

Email address (e.g., John.Doe@awesomeu)

Enrollment status (e.g., enrolled, registered)

External ID (Canvas enrollment ID)

First and last name

Item ID and Item Type (e.g., Intro to Statistics, online class)

Order ID (The order for the cart. The unique identifier of an order.)

Product ID (e.g., class name/ID)

Purchase date (e.g., May 5, 1999)

Canvas Studio

Application username/ID & hashed password

Canvas LMS user ID

Email address (e.g., John.Doe@awesomeu)

First and last name

IP Address (e.g., 127.0.0.1)

Messages related to video content

Video or media content created by the end-user (e.g., images, voice recording, comments)

Canvas Credentials

Application username/ID and hashed password

Badge data such as issuing institution or program

Email address (e.g., John.Doe@awesomeu)

First and last name

Institution/organization (Issuer) affiliation

IP address (e.g., 127.0.0.1)

Elevate Services

All data from the Student Information System authorized by the Customer

Application Username/ID & Password

Email address (e.g., John.Doe@awesomeu)

First and last name

IP Address (e.g., 127.0.0.1)

Impact by Instructure

Application activity (e.g., page clicks in an application)

Application Username/ID & password

Browser locale (e.g., en, browser language setting)

Customer Learning Management System username

Education level

Email address (e.g., John.Doe@awesomeu)

First and last name

IP Address (e.g., 127.0.0.1)

Language (e.g., Eng)

School name

School role (e.g., student, teacher)

Slack notifications (Customer administrators)

Student identification number

Intelligent Insights

All data sets from the Data Access Platform (described at https://api-gateway.instructure.com/doc/)

LTI usage data of end-users

LearnPlatform Services

District provided identifier

Email address (e.g., John.Doe@awesomeu)

English as a Second Language status

Ethnicity

First and last name

Free or Reduced Lunch eligibility

Gender

Mobile device mac address (mobile application only)

Mobile device serial number (mobile application only)

Mobile device UDID (universal device identifier)

Name (e.g., John Doe)

Platform usage metrics (e.g., time on platform, activities completed, etc.)

Provider collected mastery/assessment metrics

Student grade level

Student Grade Level

Student identifier

Mastery Services

Application Username/ID & hashed password

Assessment Data

Accommodations

Assessment content

Student Assessment Scores

Biographic Data

Address (e.g., 123 Main Street)

Avatar image or photograph

Biographic data for teachers and administrators

Birthdate (e.g., 01/01/0000)

Email address (e.g., John.Doe@awesomeu)

English language learner status (True/False/Null)

Ethnicity (e.g., Native Hawaiian, Irish)

First and last name

Free or reduced lunch status (True/False/Null)

Gender (ItemLogic user profiles only)

Grade level (e.g., 5th)

Individualized Education Program status (True/False/Null)

Phone Number

Race (e.g., Hispanic, White, Asian)

Conversation comments (e.g., discussion)

Course Data (Trackers)

Curriculum Plans

Student Notes

Parent Notes

Tracker Title (e.g., Classrooms.title, Clasrooms.teacher name)

Tracker “Fancy Name” (classroom.teacher name)

IP Address (e.g., 127.0.0.1)

Section Data

Teacher enrollments

Student enrollments

School Name

School Position (e.g., Student)

School Student ID Number

State Student ID Number

Student Information System (SIS) Identification Number

Student report card data

Teacher Social Features (messages, comments, pinned content and connections)

Portfolium

Application username/ID & password

Avatar image or photograph

Biographical information such as: phone number, gender, social media url, resume, C.V., occupation, job title, schools attended, graduation year, skills, certificates, publications, project samples, work experiences, and microcredentials.

Date of birth

Device indentifier

Email address (e.g., John.Doe@awesomeu)

First and last name

IP Address (e.g., 127.0.0.1)

Messages

Porfolio artifacts such as: skills, projects, writing samples, articles, videos, photos, website links, and social media links.

Section 2 – Description of the Processing and Transfer (when data are transferred)

Categories of data subjects whose personal data is transferred:

End-users of the Services as authorized by Customer.

Categories of personal data transferred:

As described in Schedule 1, Section 1.

Sensitive data transferred:

The Services are generally not intended to process sensitive personal data, or special categories of personal data. Any processing of these data is determined and controlled by Customer in compliance with Data Protection Laws.

The frequency of the transfer (e.g., whether the data is transferred on a one-off or continuous basis):

Continuous for the duration of the Agreement.

Nature of the processing:

Performance of the Services described in the Agreement.

Purpose(s) of the data transfer and further processing:

As described in Section 3 of the DPA.

Instructure's data centers for the Services are located in the following regions based on the Customer's location.

EU, EEA, or UK based customers: Ireland or Germany.

Australia: Australia, Singapore, India (Impact only)

Singapore: Australia, Singapore, India (Impact only)

Canada: Canada

U.S.: U.S.

Latin America: U.S.

Africa: U.S., or Ireland

Instructure's data centers for all Mastery Services and Elevate Services are in the U.S. regardless of Customer location.

Instructure's Processing locations for its support services where Instructure operates as a Controller is described at https://trust.instructure.com/d/instructure-third-party-service-provider-guide/dlbvTx?lng=en.

Instructure may Process and/or transfer Customer Personal Data and Account Data outside of the Customer's home region for the underlying support services.

Relationship and Contract Management. Including providing contract and customer relationship management services.

Customer Support. Including end-user helpdesk support and technical operations support.

Professional Services. Including integration services, implementation services, and configuration services as purchased by Customer.

Engineering and Security Support. Including Customer Personal Data included in, user support tickets, application logs, security logs, database logs, systems logs, application databases, and security alerting tools may be reviewed by Instructure authorized personnel.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period:

Processor will process Customer Personal Data for the duration of the Agreement. Upon termination of the Agreement, it will be deleted in accordance with this DPA or the Agreement.

For transfers to (sub-) processors, also specify subject matter, nature, and duration of the processing:

The duration will be until the termination of the Agreement.

Schedule 2 - U.S. K-12 & Higher Education Addendum

This Schedule 2 applies to Customers that are classified as U.S. based K-12 or higher education institution that are government recognized, formally-accredited educational institutions delivering nationally approved certifications or diplomas at primary, secondary, or third levels, and supplements the DPA to which it is attached.

Definitions In addition to the terms defined in the DPA, the following definitions apply to this Schedule 2.

“Education Records” means records, files, documents, and other materials directly related to a student and maintained by the Customer, or by a person acting the Customer as defined under FERPA.

“School Official” for the purposes of this Schedule and pursuant to 34 CFR § 99.31(b), a School Official is a contractor that, (a) performs an institutional service or function for which the agency or institution would otherwise use employees; (b) is under the direct control of the agency or institution with respect to the use and maintenance of Student Data including Education Records; and (c) Is subject to 34 CFR § 99.33(a) governing the use and re-disclosure of Personally Identifiable Information from Education Records.

“Student Data” means any data, whether gathered by Instructure or provided by Customer or its users of the Services, that is descriptive of a student including but not limited to, information in the student’s Education Record, email address, first and last name, birthdate, home or other physical address, telephone number, or other information allowing physical or online contact, videos, test results, special education data, grades, evaluations, disabilities, socioeconomic information, documents, student identifiers, search activity, photos, voice recordings, geolocation information, parents’ names, or any other information or identification number that would provide information about a specific student. Student Data includes metadata that is not De-identified. Student Data also includes “Personally Identifiable Information or (PII),” as defined in 34 C.F.R. § 99.3 or as defined under any applicable U.S. state law. Student Data shall constitute Education Records for the purposes of this DPA, and for the purposes of U.S. federal, state, and local laws, and regulations. Student Data as specified in Schedule 1 is confirmed to be collected or processed by the Instructure pursuant to the Services. Student Data shall not constitute that information that has been anonymized or De-Identified, or anonymous usage data regarding a user’s use of the Services.

“Student Generated Content” means materials or content created by a student in the Services including, but not limited to, essays, research reports, portfolios, creative writing, music or other audio files, photographs, and videos. Student Generated Content does not include assessments.

FERPA. To the extent that the Customer is subject to FERPA, the Parties agree that Instructure operates as a School Official under FERPA and has a legitimate educational interest in Personally Identifiable Information from Education Records received from the Customer pursuant to this DPA. For purposes of the Agreement and this DPA, Instructure, (a) provides a service or function for which the Customer would otherwise use employees, (b) is under the direct control of the Customer with respect to the use and maintenance of Education Records; and (c) is subject to the requirements of FERPA governing the use and redisclosure of Personally Identifiable Information from the Education Records received from Customer.

Parent Access. To the extent required by Data Protection Laws, Instructure shall establish reasonable procedures by which a parent, legal guardian, or eligible student (as defined under FERPA) may review Education Records and/or Student Data, correct erroneous information, and procedures for the transfer of Student Generated Content to a personal account consistent with the functionality of Services. Instructure shall respond in a reasonably timely manner from the date of the request or pursuant to the time frame required under Data Protection Law for a Customer to respond to a parent, legal guardian, or eligible student, whichever is sooner, to the Customer’s request for Student Data in an Education Record held by the Instructure to view or correct as necessary. If a parent or legal guardian of a student or eligible student contacts the Instructure to review any of the Student Data accessed pursuant to the Services, Instructure shall refer the individual making the request to the Customer for access to such Education Records and/or Student Data.

Separate Account. To the extent required by Data Protection Laws, if Student Generated Content is stored or maintained by Instructure, Instructure shall, at the request of the Customer, transfer or provide a mechanism for the Customer to transfer such Student Generated Content to a separate account created by the student consistent with the functionality of the Services.

Customer Obligations. Customer shall provide Student Data for the purposes of obtaining the Services in compliance with all applicable Data Protection Laws.

Children's Privacy. Children under 13 may only use the Services with prior consent of a parent or of educational institution acting on behalf of the child's parent. Customer agrees that it has obtained such consent prior to permitting any child under 13 from accessing or using the Services.

Schedule of Data. The list of Student Data Processed by Instructure is described in Schedule 1.

Schedule 3 - EEA & UK Addendum

This Schedule 3 shall apply if Customer is in the EEA, UK, or is subject to the jurisdiction of Data Protection Laws of the EEA or UK and supplements the DPA to which it is attached.

Definitions. In addition to the terms defined in the DPA, the following definitions apply to this Schedule 3.

"EEA" means the European Economic Area, consisting of the Member States of the European Union and Iceland, Liechtenstein, and Norway.

"GDPR" means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC and the UK equivalent.

"Data Privacy Framework" means the EU-US Data Privacy Framework ("EU-US DPF"), Swiss-US Data Privacy Framework, and the UK Extension to the EU-U.S. DPF self-certification program operated by the U.S. Department of Commerce.

"Data Privacy Principles" mean the Data Privacy Framework principles (as supplemented by the Supplemental Principles).

"Standard Contractual Clauses" means the contractual clauses issued by the European Commission by implementing decision 2021/914 of 4th of June 2021 on standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council, the UK International Data Transfer Addendum ("UK Addendum"), and any similar measures promulgated pursuant to the GDPR to address the transfer of Personal Data to a Third-country and any amendments and replacements thereto as may be promulgated from time to time.

"Supplementary Measures" means technical, organizational, and contractual measures as described in EDPB Guideline adopted on 18th June 2021 the Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of Personal Data.

"Third-country" means a country that is neither part of the EEA nor UK, nor has been declared adequate by a decision of the European Commission according to the mechanism described in Article 45 GDPR or covered by the UK adequacy regulations.

"UK" means the United Kingdom, Wales, and Northern Ireland.

Instructure as Processor for Customer Personal Data. The duration of the Processing, the nature and purpose of the Processing, the types of Personal Data and categories of Data Subjects about whom Personal Data is Processed under this DPA are further specified in Schedule 1.

Cross Border Data Transfers. Customer acknowledges and agrees that providing the Services may require transfer to, and Processing of Customer Personal Data and Account Data within a Third-country. All transfers to a Third-country are subject to the following conditions: (a) Customer has given prior authorization for the transfer by signing the Agreement; (b) Customer Personal Data and Account Data are Processed under the terms of the Agreement and this DPA; (c) there is a valid transfer mechanism in place in accordance with applicable Data Protection Laws; and (d) Instructure shall implement the Supplementary Measures, where necessary.

Order of Precedence. In the event the Services are covered by more than one transfer mechanism under Data Protection Laws, the transfer of Customer Personal Data will be subject to a single transfer mechanism, as applicable, and in accordance with the following order of precedence: (a) the Data Privacy Framework as set forth in Section 4.1; (b) the Standard Contractual Clauses as set forth in Section 4.2; (c) the Jurisdiction Specific Terms as set forth in Schedule 4; and, if neither (a), (b), nor (c) is applicable, then (d) other applicable data transfer mechanisms permitted under Data Protection Laws.

Data Privacy Framework. To the extent that Instructure processes any Personal Data via the Services originating in the EU, UK, or Switzerland, Instructure represents that Instructure, Inc., is self-certified under the Data Privacy Framework and complies with the Data Privacy Principles when processing any such Personal Data. To the extent that Customer is (a) located in the United States of America and is self-certified under the Data Privacy Framework, or (b) located in the EEA, UK, or Switzerland, Instructure further agrees (i) to provide at least the same level of protection to any Customer Personal Data as required by the Data Privacy Principles; (ii) to notify Customer in writing, without undue delay, if its self-certification to the Data Privacy Framework is withdrawn, terminated, revoked, or otherwise invalidated (in which case, the Standard Contractual Clauses will apply in accordance with Section 4.2; and (iii) upon written notice, to work with Customer to take reasonable and appropriate steps to stop and remediate any unauthorized Processing of Customer Personal Data.

Standard Contractual Clauses: A valid transfer mechanism referred in Section 4 is: (a) where Instructure acts as a Processor and Customer acts as a Controller, the Standard Contractual Clauses, Module TWO: Transfer Controller to Processor; (b) where Instructure acts as a Controller and Customer acts as a Controller, the Standard Contractual Clauses, Module ONE: Transfer Controller to Controller; (c) and in both cases, the UK Addendum thereto attached as Appendix 2, and all of the foregoing are deemed to be incorporated herein by reference as set forth below.

In respect of the Standard Contractual Clauses, the Parties agree on the following: (a) in clause 7, the Parties choose to include the “docking clause”; (b) where Module Two applies, in clause 9, the Parties choose Option 2: “general written authorization”; (c) where Module Two applies, in clause 9, the Parties choose twenty (20) days as the specific time period; (d) in clause 11, the Parties do not choose the optional complaint mechanism; (e) in clause 17, the governing law is the law of the EU Member State: Option 1 - where Customer is established in an EU Member State, the law in that EU Member State; or Option 2 - where Customer is not established in an EU Member State but has appointed a representative pursuant to Article 27(1) of the GDPR, the law in the EU Member State in which the Customer’s representative is located; or Option 3 - where Customer is not established in an EU Member State and is not required to appoint a representative pursuant to Article 27(2) of the GDPR, the law of UK, or as defined in the Agreement; and in clause 18, the country of the applicable court in respect of any disputes arising from Standard Contractual Clauses is the courts in which in which the Parties have denoted choice of law above.

To the extent that Instructure uses a Sub-processor in a Third-Country for the Processing of Customer Personal Data, the following shall apply in addition to Section 4 above: (a) Customer has given prior authorization for the transfer by signing the Agreement; (b) there is a valid transfer mechanism in place in accordance with Data Protection Laws; and (c) Instructure makes information on the transfer mechanism, and where applicable, the Standard Contractual Clauses, available without undue delay to Customer.

APPENDIX 1 - STANDARD CONTRACTUAL CLAUSES

Annex I

A. LIST OF PARTIES

Data exporter(s): As defined in the Agreement

Name: As defined in the Agreement

Address: As defined in the Agreement

Contact person’s name, position and contact details: As defined in the Agreement

Activities relevant to the data transferred under these Clauses: As defined in the Agreement

Signature and date: As defined in the Agreement

Role: Controller

Data importer(s):

Name: Instructure, Inc., and/or Instructure Global Limited

Address:

6330 S 3000 E, Suite 700, Salt Lake City, Utah 84121, USA.

Birchin Court, 5th Floor, 19-25 Birchin Lane, London EC3V 9DU United Kingdom

Contact person’s name, position, and contact details: Data Protection Officer, privacy@instructure.com,

Activities relevant to the data transferred under these Clauses: As defined in the Agreement.

Signature and date: As defined in the Agreement

Role: Processor (Customer Personal Data) and Controller (Account Data)

B. DESCRIPTION OF TRANSFER. As described in Schedule 1.

C. COMPETENT SUPERVISORY AUTHORITY. The competent supervisory authority is the supervisory authority denoted in Section 4.2.

Annex II - TECHNICAL AND ORGANISATIONAL MEASURES INCLUDING TECHNICAL AND ORGANISATIONAL MEASURES TO ENSURE THE SECURITY OF THE DATA

Instructure’s technical and organizational measures are described at: https://www.instructure.com/trust-center/resources

Annex III - LIST OF SUB-PROCESSORS

https://trust.instructure.com/d/instructure-third-party-service-provider-guide/dlbvTx?lng=en

APPENDIX 2 - UK International Data Transfer Addendum to the EU Commission Standard Contractual Clauses - VERSION B1.0, in force 21 March 2022

This Addendum has been issued by the Information Commissioner for Parties making Restricted Transfers. The Information Commissioner considers that it provides Appropriate Safeguards for Restricted Transfers when it is entered into as a legally binding contract.

Part 1: Tables

Table 1: Parties

Start date

The effective date of the DPA to which this Appendix has been attached.

The Parties

Exporter (who sends the Restricted Transfer)

Importer (who receives the Restricted Transfer)

Parties’ details

As described in the Agreement.

As described in Schedule 3 - Appendix 1

Key Contact

As described in the Agreement.

As described in Schedule 3 - Appendix 1

Signature (if required for the purposes of Section 2)

As described in the Agreement.

As described in Schedule 3 - Appendix 1

Table 2: Selected SCCs, Modules and Selected Clauses

Addendum EU SCCs

X the Approved EU SCCs, including the Appendix Information and with only the following modules, clauses or optional provisions of the Approved EU SCCs brought into effect for the purposes of this Addendum:

Module

Module in operation

Clause 7 (Docking Clause)

Clause 11

(Option)

Clause 9a (Prior Authorisation or General Authorisation)

Clause 9a (Time period)

Is personal data received from the Importer combined with personal data collected by the Exporter?

1

Yes

Yes

No

2

Yes

Yes

No

General

30 days

3

N/A

N/A

N/A

N/A

N/A

4

N/A

N/A

N/A

N/A

Table 3: Appendix Information

“Appendix Information” means the information which must be provided for the selected modules as set out in the Appendix of the Approved EU SCCs (other than the Parties), and which for this Addendum is set out in:

Annex 1A: List of Parties: Schedule 3 - Appendix 1, Annex IA

Annex 1B: Description of Transfer: Schedule 1

Annex II: Technical and organisational measures including technical and organisational measures to ensure the security of the data: Schedule 3 - Appendix 1, Annex II

Annex III: List of Sub processors (Modules 2 and 3 only): Not applicable to a general authorisation to engage sub-processors, but a list of Instructure subprocessors is available as described in Section 5 of the DPA.

Table 4: Ending this Addendum when the Approved Addendum Changes

Ending this Addendum when the Approved Addendum changes

Which Parties may end this Addendum as set out in Section 19 of the Mandatory Clauses.:

□ Importer

□ Exporter

□ neither Party

Part 2: Mandatory Clauses - Alternative Part 2 Mandatory Clauses:

Mandatory Clauses

Part 2: Mandatory Clauses of the Approved Addendum, being the template Addendum B.1.0 issued by the ICO and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18 of the Mandatory Clauses.

Schedule 4 – Jurisdiction Specific Terms

To the extent that Services involve the Processing of Customer Personal Data originating from the following countries, the relevant provisions set out below will apply and supplement the applicable DPA provisions.

Provisions relevant to Turkey. The provisions of this Section 1 apply where Instructure processes Customer Personal Data that originates from Turkey.

Instructure will comply with the applicable provisions of the Turkish Data Protection Act (“Turkish DPA”) numbered 6698 and dated 7 April 2016 and any related regulations, and all decisions of the Turkish Data Protection Authority.

Instructure will promptly assist the Customer: (a) by implementing appropriate technical and organizational measures, insofar as this is possible, taking into account the nature of the processing, to fulfil the Customer's obligations to respond to requests from Data Subjects exercising their rights under Data Protection Law which applies to the Customer (such as, but not limited to, rights to rectify, erase, or block Customer Personal Data); and (b) in ensuring compliance with the Customer's obligations pursuant to Article 12 of the Turkish Data Protection Act (security, notification of personal data breaches to authorities and individuals), taking into account the nature of the Processing and the information available to Instructure.

Where Instructure processes, outside of Turkey, Customer Personal Data subject to the Turkish DPA originating from Turkey, then Instructure shall cooperate with Customer with any formalities required by the Turkish Data Protection Authority.

Provisions relevant to Switzerland. The provisions of this Section 2 apply where Instructure processes Customer Personal Data and/or Account Data that originates from Switzerland.

The definition of “Applicable Data Protection Law” includes the Swiss Federal Act on Data Protection, as revised (“FADP”).

When Instructure engages a Sub-processor under Section 6 (Sub-processors) of this DPA, it will: (a) require any appointed Sub-processor to protect the Customer Personal Data to the standard required by applicable Data Protection Law, such as including the same data protection obligations referred to in Article 28(3) of the GDPR, in particular providing sufficient guarantees to implement appropriate technical and organizational measures in such a manner that the Processing will meet the requirements of the GDPR, and (b) require any appointed Sub-processor to (i) agree in writing to only Process Customer Personal Data in a country that Switzerland has declared to have an “adequate” level of protection or (ii) only process Customer Personal Data on terms equivalent to the EU Standard Contractual Clauses.

To the extent that Customer Personal Data and/or Account Data transfers from Switzerland are subject to the EU Standard Contractual Clauses, the following amendments will apply to the EU Standard Contractual Clauses; (a) references to "EU Member State" and "Member State' will be interpreted to include Switzerland, and (b) insofar as the transfer or onward transfers are subject to the FADP: (i) references to "Regulation (EU) 2016/679" are to be interpreted as references to the FADP; (ii) the "competent supervisory authority" in Annex I, Part C will be the Swiss Federal Data Protection and Information Commissioner; (iii) in Clause 17 (Option 1), the EU Standard Contractual Clauses will be governed by the laws of Switzerland; and (iv) in Clause 18(b) of the EU Standard Contractual Clauses, disputes will be resolved before the courts of Switzerland.

Provisions relevant to Australia. The provisions of this Section 3 apply where Instructure processes Customer Personal Data that originates from Australia.

“APPs” shall mean the Australian Privacy Principles in the Privacy Act.

“Personal Information” has the meaning given to that term in the Privacy Act.

“Privacy Act” shall mean the Australian Privacy Act 1988 (Cth).

Instructure shall in respect of any Customer Personal Data it receives or has access to under the Agreement; (a) comply with the APPs (except for APP 1) as if it were bound by the APPs to the same extent as the Customer; and (b) without limiting sub-paragraph (a), enter into a similar contractual arrangement with any third party to whom it discloses the Personal Information (whereby the third party agrees to comply with the APPs in respect of such information (except for APP 1) as if that third party were bound by the APPs to the same extent as the Customer).

Provisions relevant to Hong Kong. The provisions of this Section 4 apply where Instructure processes Customer Personal Data that originates from Hong Kong.

To the extent that Instructure carries out direct marketing on behalf of the Customer, Instructure shall implement effective measures designed to inform data subjects of the scope of the marketing and provide effective means designed to allow data subjects to give consent in accordance with the requirements of the Personal Data (Privacy) Ordinance (Cap. 486) ("PDPO").

Instructure shall comply with the data retention requirement (DDP2) and data security requirement (DPP4) as contained in the PDPO.

Provisions relevant to India. The provisions of this Section 5 apply where Instructure processes Customer Personal Data that originates from India. When Providing the Services, Instructure shall comply with the requirements of the Information Technology Act 2000, the Information Technology (reasonable security practices and procedures and sensitive personal data or information) Rules 2011 (each as amended, modified, supplemented from time to time) as applicable to a body corporate, and any other laws, rules, regulations, notifications, judgements relating to data protection or privacy that are in force as of date of the Agreement, or that may be brought into force in India at any time in the future during the term of the Agreement.

Provisions relevant to Japan. The provisions of this Section 6 apply where Instructure processes Customer Personal Data that originates from Japan.

Instructure shall not obtain any Customer Personal Data from the Customer in Japan or another party through any deceptive, fraudulent, or other wrongful means.

Instructure shall make a reasonable effort to ensure that the transferred Customer Personal Data is accurate and up to date and within the scope necessary to perform the Services.

Instructure will take the appropriate technical and organizational security measures designed to adequately protect all Customer Personal Data in Japan against not only misuse and loss, but also leakage and damage, in accordance with any relevant Order, the Agreement, this DPA, and the Act on the Protection of Personal Information (Act No. 57 of 2003, as amended) (the “APPI”).

Instructure will implement appropriate technical and organizational measures, insofar as this is possible considering the nature of the Processing, to fulfil the Customer’s obligations to respond to requests from Data Subjects exercising their rights under applicable Data Protection Law which applies to the Customer (such as, but not limited to, rights to rectify, erase, or block Customer Personal Data).

If Instructure acquires Customer Personal Data of Data Subjects in Japan directly from those Data Subjects, in connection with the Services by Instructure to those Data Subjects, Instructure will process Customer Personal Data of those Data Subjects in compliance with the APPI and all accompanying regulations and guidelines issued by the Personal Information Protection Commission of Japan, and all other privacy legislation and other laws which the Instructure is subject to, even when it handles Customer Personal Data of those data subjects outside Japan.

Instructure will notify the Customer of any notices, requests, orders or queries from Data Subjects, any data protection or other governmental authority, law enforcement agency, court order or tribunal, which the Customer or Instructure is obliged to comply with under the APPI or other applicable laws to facilitate timely resolution of any matter arising in connection with the foregoing or any related investigation.

Provisions relevant to Malaysia. The provisions of this Section 7 apply where Instructure processes Customer Personal Data that originates from Malaysia.

For the purposes of this Section 7, “Personal Data”, “Sensitive Personal Data” and “Data User” have the meanings given to those terms in the Personal Data Protection Act 2010.

Instructure shall comply with the Personal Data Protection Act 2010 to the extent that this applies to Processors and the Customer Personal Data to be Processed hereunder.

No Customer Personal Data shall be transferred to a country outside Malaysia unless to such country as specified by the Minister by notification published in the Gazette (if any) or with the consent of the Data User or as otherwise permitted in the circumstances as prescribed in the Personal Data Protection Act 2010 with regards to the transfer of Personal Data.

No processing of special categories of data/sensitive data within the meaning of Sensitive Personal Data, including any transfer thereof, may be made without the explicit consent of the Data Subject or as otherwise permitted in the circumstances as prescribed in the Personal Data Protection Act 2010 with regards to the processing of Sensitive Personal Data.

Instructure will promptly assist the Data User to fulfil the Data User’s obligations to respond to requests from Data Subjects exercising their rights under Data Protection Laws which apply to the Data User within the time as prescribed by the Personal Data Protection Act 2010.

Provisions relevant to New Zealand. The provisions of this Section 8 apply where Instructure processes Customer Personal Data that originates from New Zealand. Instructure shall comply with the Information Privacy Principles set out in the New Zealand Privacy Act 1993 (the “Act”) (as though Instructure were Customer) and shall cooperate with the Customer in a manner designed to ensure that the Customer can meet its obligations (including in relation to information privacy requests and investigations) under that Act.

Provisions relevant to the Philippines. The provisions of this Section 9 apply: (a) where Instructure processes Customer Personal Data about a Philippine citizen or resident; (b) where Instructure, Processor or Customer is found or established in the Philippines; (c) where the processing of Customer Personal Data is done in the Philippines; or (d) where the processing of Customer Personal Data is done or engaged in by an entity with links to the Philippines.

Instructure will comply with the following obligations: (a) comply with applicable local laws and regulations and issuances of the Philippine National Privacy Commission; (b) assist the Customer, by appropriate technical and organizational measures and to the extent possible, to fulfil the obligation to respond to requests by Data Subjects relative to the exercise of their rights; (c) assist the Customer in ensuring compliance with applicable local laws and regulations and issuances of the Philippine National Privacy Commission, taking into account the nature of processing and the Customer Personal Data available to Instructure; (d) make available to the Customer all information necessary to demonstrate compliance with the obligations laid down in applicable local laws and regulations; and (e) immediately inform the Customer if, in its opinion, a Direction from the Customer infringes any applicable local law, regulation or issuance of the Philippine National Privacy Commission.

Instructure shall host and Process the Customer Personal Data stored in the Services as described in Schedule 1.

Provisions relevant to Singapore. Instructure shall comply with the Personal Data Protection Act 2012 to the extent that this applies to Processors and the Customer Personal Data to be Processed hereunder. Instructure shall host the Customer Personal Data stored in the Services as described in Schedule 1. Instructure shall Process Customer Personal Data in as described in Schedule 1.

Provisions relevant to South Korea. The provisions of this Section 11 apply: (a) where Instructure processes Customer Personal Data that originates from South Korea; or (b) where Instructure is an entity located in South Korea.

Instructure will comply with the applicable provisions of the Personal Data Protection Act (as amended), and the Act on Promotion of Data and Communications Network Utilization and Data Protection, etc., (as amended).

Subject to the limitations and waivers of liability in the Agreement, Instructure shall be liable to the Customer for damages that it causes by any breach of provisions in this DPA.

Instructure shall host and Process the Customer Personal Data stored in the Services as described in Schedule 1.

Provisions relevant to Taiwan. The provisions of this Section 12 apply where Instructure Processes Customer Personal Data that originates from Taiwan or is the Customer Personal Data of Taiwanese national Data Subject anywhere in the world. Instructure shall host the Customer Personal Data stored in the Services as described in Schedule 1. Instructure shall Process Customer Personal Data in as described in Schedule 1.

Instructure will comply with the applicable provisions of the current Taiwan Personal Information Act (the “PIPA”), the Enforcement Rules to the Personal Information Protection Act (the “PIPA Enforcement Rules”), and any other data protection regulations currently in force in Taiwan.

Instructure will promptly assist the Customer: (a) by implementing appropriate technical and organizational measures, insofar as this is possible taking into account the nature of the processing, to fulfil the Customer’s obligations to respond to requests from Data Subjects exercising their rights under the PIPA which apply to the Customer (such as, but not limited to, rights to review, to copy, to rectify, to cease collection, processing, or use, or to erase Customer Personal Data); (b) in ensuring compliance with the Customer’s obligations pursuant to Article 12 of the PIPA (prompt investigation of data breach and notice to individuals) and any applicable industry-specific regulations issued under Article 27 of the same (including but not limited to any industry-specific duty to notify the regulator of a data breach) taking into account the nature of the processing and the information available to Instructure; and (c) by immediately informing the Customer if, in Instructure’s opinion, an instruction from the Customer to collect, process, or use Customer Personal Data violates the PIPA.

Instructure shall adopt the technical and organizational measures set forth in Article 12(2) of the PIPA Enforcement Rules proportional to the purpose of the prevention of Customer Personal Data from being stolen, altered, damaged, destroyed or disclosed.

In addition to informing the Customer of any serious interruption of Instructure’s Processing operations, any suspicion of Security Breaches, or violation of the PIPA, the PIPA Enforcement Rules, or other Taiwan data protection regulations, Instructure shall inform the Customer of all remedial measures taken to remedy the interruption, breach, or violation.

Instructure shall comply with any reserved instruction from the Customer and has an obligation to provide information evidencing compliance with any such reserved instruction to the Customer.

Provisions relevant to Brazil. The provisions of this Section 14 apply where Instructure processes Customer Personal Data that originates from Brazil.

The definition of “Data Protection Laws” includes the Lei Geral de Proteção de Dados (LGPD).

The definition of “Security Breach” includes a security incident that may result in any relevant risk or damage to Data Subjects.

The definition of “Processor” includes “operator” as defined under the LGPD.

To the extent Customer Personal Data is processed through the Internet, the provisions of the Brazilian Internet Act (Law 12,965/2014) must be observed. Instructure will comply with the so-called Habeas Data Law (Law 9,507/1997) to the extent applicable.

Provisions relevant to Chile. The provisions of this Section 15 apply where Instructure processes Customer Personal Data that originates from Chile.

Instructure will comply with Section 14 of this Schedule 4.

Instructure will comply with the Data Protection Act Nº 19.628, as amended. The substantive provisions of the Data Protection Act entered into force on October 27, 1999, and August 22, 2000.

Provisions relevant to Colombia. The provisions of this Section 15 apply where Instructure processes Customer Personal Data that originates from Colombia.

Instructure will comply with Section 15 of this Schedule 4.

For the purposes of this Section 15: (a) “Colombian GDP” shall mean the Colombian General Data Protection legal framework (Law 1581 of 2012 and Decree 1074 of 2015); and (b) Customer Persona Data flows between Instructure and Customer will be understood as ‘data transmissions’ under the Colombian GDP.

Instructure will comply with the following obligations: (a) Process Customer Personal Data only for the purposes authorized by the individuals who are the subjects of such information; (b) Process Customer Personal Data pursuant to the Customer’s instructions and privacy notice; and (c) Process Customer Personal Data pursuant to the principles set forth in the Colombian GDP.

Provisions relevant to Mexico. The provisions of this Section 16 apply where Instructure processes Customer Personal Data that originates from Mexico.

Instructure will comply with Section 16 of this Schedule 4.

Instructure will comply with the security measures set out in Article 52 of the Mexican Data Protection Regulations (Reglamento de la Ley Federal de Protección de Datos Personales en Posesión de los Particulares) where applicable.

Instructure will process Customer Personal Data in accordance with the privacy notice of the Customer, provided that Customer shall ensure that the Customer's privacy notice adequately describes the processing of Customer Personal Data by Instructure under the Agreement in a manner compliant with Mexican law.

Provisions relevant to the Republic of Argentina. The provisions of this Section 17 apply where Instructure processes Customer Personal Data that originates from the Republic of Argentina.

Instructure agrees to comply with the obligations of a data importer as set out in the model contract titled Contrato Modelo de Transferencia Internacional de Datos Personales con Motivo de Prestación de Servicios adopted by the Data Protection Agency of the Republic of Argentina under Disposition 60 — E/2016 (the "Argentinian SCCs") for the transfer of Personal Data to data processors established in third countries (as defined thereunder).

Instructure acknowledges that each Customer Affiliate in the Republic of Argentina will be a Customer. In particular, and without limiting the above obligation: (a) Instructure agrees to grant third party beneficiary rights to Data Subjects, as set out in Clause 3 of the Argentinian SCCs, provided that Instructure's liability shall be limited to its own Processing operations; and ((b) Instructure agrees that its obligations under the Argentinian SCCs shall be governed by the laws of the Republic of Argentina in which the Customer Affiliates that are the data exporter(s) are established; and (c) the details of the appendices applicable to the Argentinian SCCs are set out in Schedule 1 to this DPA.

For the purposes of Annex A to the Argentinian SCCs, the data exporter is an educational institution; the data importer is an international education technology company and details about the data subjects, categories of data, processing operations and security measures are as set out in Schedule 1 to this DPA.

Instructure shall neither apply nor use the Customer Personal Data for any purpose other than the one specified in this DPA nor shall Instructure, except as permitted in this DPA and the Agreement, communicate to other parties such Customer Personal Data, even for storage purposes. Once the corresponding contractual obligations have been performed, the Customer Personal Data processed must be destroyed, except where there is an express authorization given by the person for account of whom such services are rendered, by reason of a possibility of the Customer Personal Data being used for future services, in which case the Customer Personal Data may be stored under due security conditions for a maximum term of up to two (2) years. The parties agree to adopt confidentiality measures to protect the Customer Personal Data following section 9 of the Data Protection Act and its Regulations. Instructure shall process the Customer Personal Data following only instructions from the Customer.

Provisions relevant to Canada. The provisions of this Section 18 apply where Instructure processes Customer Personal Data that originates from Canada.

Instructure shall comply with the Personal Information Protection and Electronic Documents Act and any provincial statute that is declared substantially similar pursuant to section 26(2)(b), where applicable and Instructure shall promptly inform Customer if the location where the Customer Personal Data is hosted ever changes.

Schedule 5 – LearnPlatform Research Services Customer Addendum

This Schedule 5 applies to Customers that are education technology providers that have purchased LearnPlatform research services from Instructure under the Agreement and supplements the DPA to which it is attached.

Definitions. For the purposes of this Schedule 5, the following definitions shall apply in addition the terms defined in the DPA.

"LEA" means educational institution, local education agency, school, or district that provides the Shared Data to Instructure for Processing under this DPA.

"Purpose" means evaluating the effectiveness of Customer's educational products and services, including through collecting feedback from an LEA, and through the measuring of product utility, to enhance, supplement, and improve instruction for students.

"Results" means the analysis of the Shared Data performed by Instructure.

“Shared Data” means as any data or information shared with Instructure by the Customer or an LEA in order for Instructure to provide the Services, including but not limited to any de-identified data, aggregated data sets, personally identifiable information (PII) about students, and other student information, including, but not limited to, student data, metadata, and user content.

Purpose. Customer is an educational technology company that maintains “education records,” as defined by FERPA. Instructure is requesting access to certain education records provided by the Customer for the purpose of providing the Services to Customer.

Roles of the Parties. The parties agree that with respect to Shared Data, Customer is the “business” or “controller”, and Instructure is the “processor” or “service provider,” in each case as such terms are defined by applicable Data Protection Laws.

Ownership and Processing of the Shared Data.

Customer represents, warrants, and covenants that it has complied with all applicable Data Protection Laws, including without limitation providing all notices and obtaining all consents and rights necessary under applicable Data Protection Laws for Instructure to Process any Shared Data shared by Customer or the LEA with Instructure. In the event Customer determines that the foregoing representation, warranty and covenant is untrue with respect to any Shared Data, Customer will promptly notify Instructure. Customer shall indemnify Instructure from and against all claims, directly resulting from any material breach of this Section 4.1 by Customer, its employees, agents, contractors, Sub-processors, or subcontractors. A breach of this Section 4.1 shall be considered a material breach of this DPA.

Except as otherwise set forth expressly in this DPA and the Agreement, the Parties agree that the Shared Data and all rights to the Shared Data, shall, as between Instructure and Customer, remain the exclusive property of Customer or the LEA that provided the Shared Data to Instructure. Instructure understands that the DPA does not convey ownership of Shared Data to Instructure.

Customer acknowledges that any Shared Data shared and provided to Instructure under the Agreement is for the sole purpose of evaluating educational products and services to enhance, supplement, and improve instruction for students. Customer shall use the Shared Data will for the sole purpose of evaluating educational products to inform instructional, operational and fiscal decisions, and the practices and processes related to education technology in schools.

The parties agree that the Results, including without limitation the De-identified Data derived from the Shared Data, shall as between LEA and the Customer be the exclusive property of Instructure. De-identified Data will have all direct and indirect personal identifiers removed, including, but not limited to, name, ID numbers, date of birth, demographic information, location information, and school ID. Customer agrees not to attempt to re-identify any De-identified Data provided by Instructure to Customer. Customer agrees to grant the LEA a limited, nonexclusive, license to use the Results solely for its internal planning and purchasing decisions.

Prohibition on Unauthorized Use or Disclosure of Shared Data. The parties agree to hold all Shared Data in strict confidence. The parties shall not use or disclose any Shared Data received from or on behalf of an LEA except as authorized in this DPA, or as otherwise in directed writing by the LEA, or as required by law. The parties agree not to disclose any Shared Data obtained from the LEA in a manner that could identify any individual student to any other entity or person, attempt to infer or deduce the identity of any individual student based on Shared Data provided by the LEA, or claim to have identified or deduced the identity of any student based on Shared Data provided by LEA.

The parties are prohibited from mining Shared Data for any purposes other than those set forth in this DPA and the Agreement or otherwise agreed to in advance writing by the LEA. Data mining or scanning of user content for the purpose of advertising and/or marketing any non-educational products or services to students or their parents is strictly prohibited.

In no event will the parties use any of the Shared Data for its own commercial marketing or advertising purposes, or for the commercial marketing or advertising purposes of any third-party. Without limiting the foregoing, the parties agree that use of the Results for a party’s marketing or advertising purposes is permitted so long as no individual student identity is disclosed or capable of being deduced. The parties will not use any Shared Data to advertise or market non-educational products or services to the LEA students or their parents.

The parties may only share the Shared Data, or any part of it, with employees, agents, contractors, and subcontractors who have agreed in writing to adhere to, and be bound by, the terms of this DPA with respect to its possession and use of any Shared Data and acknowledging that employees, agents, contractors, and subcontractors is aware of its

obligations under applicable law with regard to the possession, use and re-disclosure of the Shared Data.

Instructure acknowledges that the Shared Data is for the sole purpose of evaluating the effectiveness of Customer's educational products and services, including through collecting feedback from the LEA under the Services.

Authorized Use of Shared Data. In the event Customer's access to the Shared Data is pursuant the "school official exception" as set forth in 34 CFR 99.31(a)(1)(i), Customer's use of the Shared Data shall at all times be limited to institutional functions of LEA that could otherwise be provided by a school official and which LEA is "outsourcing" to Customer pursuant to 34 CFR 99.31(a)(1)(B). Customer agrees to use the Shared Data for no other purpose other than the Purpose. Customer understands that this DPA does not convey ownership of Shared Data to Provider. Customer specifically acknowledges that Customer's use of the Shared Data and Results in connection with any marketing activities shall not exceed the acceptable uses permitted by 20 U.S.C. § 1232h(c)(4)(A).

07 | Marketing Privacy | Policy

https://www.instructure.com/policies/marketing-privacy

Webpage text snapshot | Retrieved 10 October 2026

Marketing Privacy | Policy

Languages:

English

German

Dutch

Portuguese

Last Updated: October 14, 2025

What's changed in this version?

Instructure has updated this notice to include information related to our participation in the U.S. Department of Commerce's Data Privacy Framework in Section 15.

Updated section numbers and minor typographical changes.

Instructure, Inc. ("Instructure," "we," "our," or "us") has prepared this Marketing Privacy Policy ("Privacy Policy") to describe our practices regarding the information collected from visitors to our website, https://www.instructure.com, community.canvaslms.com and any other sites that link to this Privacy Policy (collectively, "Site").

This Privacy Policy applies only to marketing activities conducted using information (including personal data) collected through the Site. To learn about how we process information when you interact with our products or services, please visit our Product Privacy Notice Center.

1. DATA COLLECTION. Below, we summarize the data collected from you when you use the Site. For a complete list of the data elements we collect from all visitors regardless of location of residence, please review our California Privacy Notice.

2. DATA YOU PROVIDE TO US. When using our Site, you may voluntarily provide personal data about yourself, such as first and last name, e-mail addresses, phone number, professional title, company name, educational institution or organization name, and any other information you choose to provide. For example, we collect this information when you provide it to our Site, contact an Instructure employee, or otherwise provide personal data to Instructure, such as via email. When you participate in one of our surveys, we may collect additional personal data, such as your interest in specific Instructure services.

3. DATA COLLECTED VIA TECHNOLOGY. To make our Site more useful to you, we automatically collect information relating to your interactions with us and our Site, including browser type, operating system, Internet Protocol (IP) address, domain name, geolocation, and/or a date/time stamp for your visit. We also use cookies and other similar technologies as well as URLs to gather information regarding the date and time of your visit and the solutions and information for which you searched and which you viewed.

4. COOKIES are small pieces of information that a website sends to your computer's hard drive while you are viewing a website.

Our Site uses the following types of cookies:

STRICTLY NECESSARY COOKIES: These cookies are essential to enable you to move around the Site and use its features. Without these cookies, services like enabling appropriate content based on your type of device cannot be provided.

PERFORMANCE COOKIES: These cookies collect information about how visitors use the Site, so that we can analyze traffic and understand how our visitors use the Site. We may use third party service providers for this purpose who may set their own cookies on the Site. All information these cookies collect is aggregated and is used to improve how the Site works.

FUNCTIONALITY COOKIES: These cookies allow our Site to remember choices you make (such as the region you are in and preferred language) and provide more personalized features. They may also be used to provide services you have asked for such as watching a video.

SOCIAL MEDIA COOKIES: These cookies are used when you share information using a social media sharing button or engage with our content on or through a social media site such as Facebook, Twitter, Instagram, or LinkedIn. The social network will record that you have done this. This information may be linked to targeting/advertising activities conducted by third parties on Instructure's behalf.

TARGETING AND ADVERTISING COOKIES: These cookies are used to deliver advertisements more relevant to you and your interests. These cookies are also used to limit the number of times you see an advertisement as well as help measure the effectiveness of advertising campaigns. To learn more about the use of this information and the choice available to you, please see the "Use of Your Data" in Section 6 of this privacy policy.

5. ANALYTICS. We use third-party analytics services to collect and analyze data about how users use the Site. These services use cookies, scripts, and other technologies to collect and store information such as how users interact with our Site, how often users visit the Site, what pages they visit, and what other sites they used prior to coming to the Site.

Instructure uses Google Analytics and other third-party services to improve the performance of the Site and for analytics and marketing purposes. For more information about how Google Analytics collects and uses data when you use our Site, visit https://www.google.com/policies/privacy/partners/, and to opt out of Google Analytics, visit https://tools.google.com/dlpage/gaoptout/.

If you want to limit the use of cookies, your browser may offer tools to do so. By disabling cookies, you may be prevented from accessing some features of our Site or certain content or functionality may not be available.

6. USE OF YOUR DATA. Instructure uses your personal data for any lawful purpose, including, but not limited to, the following purposes: to respond to your requests; to operate, maintain, and improve our Site, including for analytics purposes; to personalize and improve your experience; to send you administrative e-mails; to respond to your comments or inquiries; to send you surveys, promotional communications about our products and services or the products and services of third parties ("Partners"); to comply with the law and to protect, investigate, and deter against fraudulent, unauthorized, or illegal activity; to make telephone calls to you, from time to time, as a part of secondary fraud protection or to solicit your feedback with your permission; or with your consent or as otherwise disclosed at the time information is collected.

We do not use automatic decision-making or engage in profiling.

7. DISCLOSURE OF YOUR DATA. We will share your personal data with third parties as described in this Privacy Policy, including the following:

AFFILIATES. We may share personal data we collect with any subsidiaries, joint ventures, or other companies under common control ("Affiliates") we may have in the future. We may share some or all of your personal data with these Affiliates, in which case we will require our Affiliates to honor this Privacy Policy.

THIRD PARTY SERVICE PROVIDERS. We may share your personal data with third party service providers who process information on our behalf. For example, we may share data with service providers who host our websites or provide email services on our behalf.

PARTNERS. We may also share your personal data with our Partners. Our Partners may use your personal data for their own direct marketing purposes.

TRANSFER OF ASSETS. We may also share personal data about you in connection with or during negotiation of any merger, financing, acquisition, bankruptcy, dissolution, transaction or proceeding involving sale, transfer, divestiture or disclosure of all or a portion of our business or assets to another company. In the event that personal data is shared in this manner, notice will be posted on our Site.

TESTIMONIALS. We display testimonials and endorsements on our Site. With your consent we may post your testimonial along with your name. If you wish to update or delete your testimonial, you can contact us at privacy@instructure.com.

8. OTHER DISCLOSURES. Instructure may disclose information about you if it believes such disclosure is necessary to (a) comply with laws or to respond to lawful requests and legal process; (b) protect or defend the rights, safety, or property of Instructure, users of the services, or any person including to enforce our agreements, policies, and terms of

use; or (c) in an emergency to protect the personal safety of any person. We may share information with your consent or as otherwise disclosed at the time of data collection or sharing.

We may also share de-identified and/or aggregated data without limitation.

9. NOTICE TO INTERNATIONAL VISITORS. This section applies to visitors that access the Site from the European Economic Area (“EEA”), Switzerland, or the United Kingdom (“UK”).

LEGAL BASIS FOR PROCESSING. We may only process personal data about you where the laws of your jurisdiction permit it. This is called a “legal basis.” We may rely on the following legal bases to process personal data about you:

RIGHTS. You have the right to request access to the personal data we hold about you. You have the right to request that we rectify or erase your personal data. You also have the right to request that we restrict or block the processing of your personal data. Under certain circumstances, you have the right to receive personal data about you that we store and transmit to another without hindrance from us, including requesting that we provide your personal data directly to another, i.e., a right to data portability; and where we previously obtained your consent, to withdraw consent to processing your personal data.

To exercise these rights, contact us using the “Contact Information” in Section 16 below and to exercise your right to be forgotten complete the form found at https://www.instructure.com/right-be-forgotten.

Please be aware that Instructure may be unable to afford these rights to you under certain circumstances, such as if we are legally prevented from doing so. Additionally, you have the right to lodge a complaint against us. To do so, contact the supervisory authority in your country of residence.

RETENTION. We will process and store your personal data only for the period necessary to achieve the purpose of the storage, or as permitted by law. The criteria used to determine the period of storage of personal data is the respective statutory retention period or for certain marking data for our services or other products. After expiration of that period, the corresponding data is routinely deleted, as long as it is no longer necessary for the fulfillment of a contract or the initiation of a contract.

TRANSFERS OF PERSONAL DATA. Please be aware that the personal data we collect may be transferred to and maintained on servers or databases located outside your state, province, country, or other jurisdiction, where the privacy laws may not be as protective as those in your location, including the United States.

When transferring personal data to countries outside the EEA or the UK, we are required to ensure your personal data is adequately protected in the country where it is transferred. We transfer personal data to these countries only when it is subject to safeguards that assure the protection of personal data, such as entering contracts with transferee companies called the “standard contractual clauses” and the “UK addendum,” which require companies outside the EEA or UK to protect your personal data to the same extent as if it had remained in the EEA or UK.

11. CALIFORNIA PRIVACY NOTICE. California residents have certain rights under the California Consumer Privacy Act (“CCPA”) in relation to your personal data. Please visit our California Privacy Notice for more information on how to exercise these rights.

12. SOCIAL NETWORKING PLATFORMS. We may allow you to connect and share information with certain social networking platforms (“Social Networking Platforms”) (e.g., a Facebook application). By choosing to use these Social Networking Platforms, you allow Instructure to share information with the Social Networking Platform. For example, you might use an application to publish Instructure related notices on your Facebook wall. If you do not want us to continue to provide your information to the Social Networking Platform, you may change your privacy settings in the Social Networking Platform.

We do not control the privacy practices of the Social Networking Platforms and sign-in services you choose to use, and this Privacy Policy does not cover their practices, you should visit the privacy policies of any Social Networking Platform or sign-in service you choose to use to understand their practices.

13. YOUR CHOICES REGARDING PERSONAL DATA. We offer you choices regarding the collection, use, and sharing of your personal data. When you receive newsletters or promotional communications from us, you may “opt-out” by following the unsubscribe instructions provided in e-mails you receive from us or by contacting us directly at the contact information below.

Most web browsers are set to accept cookies by default. If you prefer, you can typically remove and reject cookies from our Site with your browser settings. If you remove or reject our cookies, it will affect how our Site and services work for

you.

We may partner with ad networks and other ad serving providers (“Advertising Providers”) that serve ads on behalf of us and others on non-affiliated platforms. Some of those ads may be personalized, meaning that they are intended to be relevant to you based on information Advertising Providers collect about your use of the Site and other sites over time, including information about relationships among different browsers and devices. This type of advertising is known as interest-based advertising.

14. CHANGES TO YOUR PERSONAL DATA. You may change some of your personal data in your account by choosing your communication settings in the Instructure Preference Center which is located at https://www.instructure.com/preference-center. You may also request changes or deletions by e-mailing us at the e-mail address set forth below. We will respond to your request, when permitted by law, within 30 days. We may be unable to delete personal data that resides in our archives.

15. DATA PRIVACY FRAMEWORK POLICY.

Instructure (which includes Parchment) complies with the EU-U.S. Data Privacy Framework (“EU-U.S. DPF”), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (“Swiss-U.S. DPF”) as set forth by the U.S. Department of Commerce. Instructure and Parchment have certified to the U.S. Department of Commerce that they adhere to the EU-U.S. Data Privacy Framework Principles (“EU-U.S. DPF Principles”) with regard to the processing of personal data received from the European Union in reliance on the EU-U.S. DPF and from the United Kingdom (and Gibraltar) in reliance on the UK Extension to the EU-U.S. DPF. Instructure has certified to the U.S. Department of Commerce that it adheres to the Swiss-U.S. Data Privacy Framework Principles (“Swiss-U.S. DPF Principles”) with regard to the processing of personal data received from Switzerland in reliance on the Swiss-U.S. DPF. If there is any conflict between the terms in this privacy policy and the EU-U.S. DPF Principles and/or the Swiss-U.S. DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework (“DPF”) program, and to view our certification, please visit https://www.dataprivacyframework.gov/.

Instructure (which includes Parchment) commits to subject to the DPF Principles all personal data received from the EU, UK, and Switzerland in reliance on the relevant DPF.

Instructure is accountable for the processing of personal data it receives under the EU-U.S. DPF Principles, the UK extension to the EU-US DPF Principles, and the Swiss-U.S. DPF Principles (collectively, “DPF Principles”) and subsequently transfers to a third party. Instructure complies with the DPF Principles for all onward transfers of personal data from the EU, UK, and Switzerland, including the onward transfer liability provisions. The Federal Trade Commission has jurisdiction over Instructure’s compliance with the EU-U.S. DPF, UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF.

Instructure may be required to disclose personal data in response to law requests by public authorities, including to meet national security and law enforcement requirements.

Residents of the EU, UK, and Switzerland have the right to access the personal data that Instructure maintains, and in some cases, have choices to limit the use and disclosure of personal data. These rights are described more fully in Section 9 “Notice to International Visitors, Rights” of this Privacy Policy. To exercise these rights, contact us at privacy@instructure.com.

In compliance with the EU-U.S. DPF, UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF, Instructure commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU, UK, and Swiss, individuals with inquiries or complaints regarding our handling of personal data received in reliance on the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF should first contact Instructure as described in the “Contact Information” in Section 16 below.

In compliance with the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF, Instructure commits to refer unresolved complaints concerning our handling of personal data received in reliance on the EU-U.S. DPF, the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF to TRUSTe, an alternative dispute resolution provider based in the United States. If you do not receive timely acknowledgment of your DPF Principles-related complaint from us, or if we have not addressed your DPF Principles-related complaint to your satisfaction,

please visit https://feedback-form.truste.com/watchdog/request for more information or to file a complaint. The services of TRUSTe are provided at no cost to you. Under certain conditions, more fully described on the DPF website, you may be entitled to invoke binding arbitration when other dispute resolution procedures have been exhausted.

16. CONTACT INFORMATION. Instructure welcomes your comments or questions regarding this Privacy Policy. Please e-mail us at privacy@instructure.com or contact us at the following address or phone number:

Instructure, Inc.

6330 S 3000 E, STE 700

Salt Lake City, UT 84121

United States of America

Phone: +1 (800) 203.6755

Instructure Global Ltd

New Penderel House, 4th Floor

283-288 High Holborn

London WC1V 7HP

Phone: 0800 358 4330

If you have an unresolved privacy or data use concern that we have not addressed satisfactorily, you may also contact our U.S.-based third party dispute resolution provider (free of charge) at https://feedback-form.truste.com/watchdog/request.

17. CHANGES TO THIS PRIVACY POLICY. Instructure may change this Privacy Policy from time to time. If we make any changes to this Policy, we will change the “Last Updated” date above. We encourage you to visit this page from time to time for the latest on our privacy practices

08 | Master Terms and Conditions | Instructure

https://www.instructure.com/policies/mastertermsconditions

Webpage text snapshot | Retrieved 10 October 2026

Resolved page: https://www.instructure.com/policies/master-terms-conditions

Master Terms and Conditions

Effective as of April 17, 2026. View previous policy.

These terms and conditions apply to the provision of the products or services identified on the Order Form by the Instructure entity identified on such Order Form. (“Instructure”) to the customer entity identified on such Order Form (“Customer”). An “Order Form” means any order for the provision of products or services signed by Customer. These terms and any applicable supplement related thereto (each a “Supplement”) are incorporated into the Order Form and together with the Order Form, form the “Agreement.” Supplements, which can be found here: https://www.instructure.com/policies/product-supplements, apply to the extent that the applicable product and/or feature is listed on the Order Form and/or utilized by Customer. To the extent there is any conflict between the Order Form, these Master Terms and Conditions, or any Supplement related thereto, such conflict shall be resolved pursuant to the following order of precedence: (i) the Order Form, (ii) any applicable Supplement, and (iii) these Master Terms and Conditions. Instructure and Customer are referred to in this Agreement each as a “party” and together as the “parties.”

Service. Subject to the terms of this Agreement, Instructure will provide to Customer proprietary software as a service offering(s) (together with any other products and services identified in the Order Form, collectively the “Service”) for the duration of such Order Form. Instructure shall: (a) deploy all updates and upgrades to the Service to Customer that Instructure provides to its customers generally for no additional charge; and (b) provide support (“Support”) pursuant to the terms described on the Order Form. For purposes of this Agreement, “User” means an individual who is authorized by the Customer to use the Service and for whom the Customer has purchased a subscription. The number of Users for which Customer has purchased subscriptions is specified on the applicable Order Form (“Contracted User Count”). Customer acknowledges that Instructure may reference data from Customer’s student information system (“SIS”) or other authoritative data source used by Customer to manage user records to verify the number of active Users accessing the Service during the applicable subscription period (“Active User Count”).

Service Restrictions. Prohibited uses of the Service shall include: (a) selling, sublicensing, or otherwise transferring or providing access to the Service, or any output from the Service, to any third party except as expressly authorized under this Agreement; (b) using or accessing the Service for competitive purposes; (c) copying, modifying, adapting, or creating derivative works from any feature, function, interface, or graphic in the Service; (d) removing or modifying Instructure’s policies, notices or proprietary markings displayed within the Service or on output from the Service; (e) using, interfering with, overloading, probing, scanning, disrupting, altering, translating, or modifying the Service, or circumventing the integrity, security or performance of the Service; (f) storing or transmitting any malicious code; (g) permitting direct or indirect access to or using the Service in a way that circumvents the contractual usage limit; (h) attempting to gain unauthorized access to the Service, its related systems or networks ; (i) using the Service to store or transmit any malicious code or data, infringing, libelous, or otherwise unlawful or tortious material, or material which violates any third-party privacy rights; (j) modifying, reverse engineering, decompiling, disassembling, decrypting, extracting, or otherwise attempting to derive or determine the source code, underlying ideas, algorithms, structure, organization, or training data associated with the Service; or (k) using the Service to distribute software or tools that gather information, distribute advertisements, or engaging in conduct that may result in retaliation against Instructure or its data, systems, or networks. Violation of any of the foregoing prohibitions by Customer or its Users will be a material breach of this Agreement. Use and access to the Application Program Interface (“API”) will be subject to the Instructure API Policy available at https://www.instructure.com/policies/api-policy.

Customer Responsibilities. Customer shall have sole responsibility for the use of the Service by Users in compliance with this Agreement and the Acceptable Use Policy provided within the Service and available at https://www.instructure.com/policies/acceptable-use (the “AUP”). Customer agrees to reasonably assist Instructure in connection with a User’s adherence to the AUP. Customer further agrees to: (a) maintain the confidentiality and security of passwords and abide by any access protocols or credential requirements set by Instructure; (b) obtain from Users any consents necessary under this Agreement or to allow Instructure to provide the Service; (c) use commercially reasonable efforts to prevent unauthorized access to or use of the Service; (d) notify Instructure promptly of any such

unauthorized access or use of which it learns; and (e) cooperate reasonably in all respects with respect to implementation, access, support, and maintenance of the Service.

Customer Representations. Customer represents that (a) it has the power and authority to validly enter into this Agreement and to fulfill its obligations hereunder; (b) the execution and delivery of this Agreement does not violate or conflict with any other agreement, license, or obligation; (c) it has not received or been offered any illegal or improper bribe, kickback, payment, gift, or thing of value from or on behalf of any employees or agents of Instructure in connection with this Agreement; and (e) it is financially solvent and has the ability to perform its obligations hereunder.

Instructure Warranties. Instructure warrants that: (a) the functionality or features of the Service and Support may change but will not materially degrade during the Term; and (b) the Service will materially conform to its then-current documentation. In the event of a breach of the foregoing warranties, Instructure shall, as Customer's sole and exclusive remedy, and at Instructure's sole discretion, either (i) correct such breach or (ii) provide Customer with a refund of the fees paid attributed to the affected Service. Customer must notify Instructure in writing of any such breach within thirty (30) days of its discovery in order to receive such warranty remedies. EXCEPT AS EXPRESSLY PROVIDED IN THIS SECTION 5 AND TO THE MAXIMUM EXTENT OF THE LAW, INSTRUCTURE AND ITS SUPPLIERS DISCLAIM ALL WARRANTIES, WHETHER WRITTEN, ORAL, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, TITLE, NON-INFRINGEMENT, AND FITNESS FOR A PARTICULAR PURPOSE. WITHOUT LIMITING THE FOREGOING, INSTRUCTURE DOES NOT WARRANT: (A) THE FUNCTIONALITY OR FEATURES OF ANY THIRD-PARTY SERVICE USED IN CONNECTION WITH THE SERVICE; (B) THE RESULTS OR OUTCOMES FROM USE OF THE SERVICE OR THAT THE SERVICE WILL BE UNINTERRUPTED OR ERROR-FREE; OR (C) THE VALIDITY, FAIRNESS OR QUALITY OF ANY CONTENT PROVIDED BY INSTRUCTURE. TO THE EXTENT THE FOREGOING DISCLAIMER IS EXPRESSLY PROHIBITED BY LAW, ANY AVAILABLE WARRANTY SHALL BE LIMITED TO THIRTY (30) DAYS AND TO THE SERVICE REMEDIES PROVIDED BY INSTRUCTURE IN THIS SECTION 5.

Fees. As consideration for the subscription to the Service, Customer shall pay all fees specified in each Order Form ("Fees") annually in advance, thirty (30) days after receipt of an invoice or as otherwise agreed to in the Order Form. All Fees owed by Customer are exclusive of, and Customer shall pay, all applicable sales, use, VAT, excise, withholding, and other taxes that may be levied in connection with this Agreement. Instructure reserves the right (in addition to any other rights or remedies Instructure may have) to discontinue the Service and to suspend all Users' and Customers' access to the Service if any Fees are overdue until such amounts are paid in full. Except as expressly set forth in this Agreement or an Order form, (a) payment obligations are non-cancelable and all Fees paid are non-refundable; (b) fees are based on subscriptions purchased and not actual usage; and (c) quantities purchased cannot be decreased during the relevant subscription term.

Usage Limits and User Count Verification.

Usage and Storage Limits. Services are subject to usage or storage limits specified in Order Forms and Documentation. If Customer exceeds a stated usage or storage limit, Instructure may work with Customer to seek to reduce Customer's usage or storage so that it conforms to that limit. If, notwithstanding Instructure's efforts, Customer is unable or unwilling to abide by a contractual usage or storage limit, Customer will execute an Order Form for additional quantities of the applicable Services promptly upon Instructure's request, and/or pay any invoice for excess usage or storage in accordance with Section 6.

User Count Verification and Reconciliation. Customer shall ensure that the number of active Users accessing the Service does not exceed the Contracted User Count on the applicable Order Form. Instructure may periodically compare the Active User Count, as indicated by the SIS or Instructure's own system data, against the Contracted User Count. If Instructure determines that the Active User Count exceeds the Contracted User Count, Instructure will notify Customer in writing. Within thirty (30) days of receipt of such notice, Customer shall either (a) reduce the Active User Count to conform to the Contracted User Count, or (b) execute an Order Form for additional subscriptions to cover the excess Users at Instructure's then-current rates, prorated for the remainder of the applicable subscription term, and/or pay any invoice for excess usage in accordance with Section 6.

Service Standard. Instructure will use commercially reasonable efforts to make each Service identified in the Order Form as a subscription (a "Subscription Service") available with an annual uptime percentage of at least 99.9% ("Subscription Service Commitment"). In the event Instructure does not meet the Subscription Service Commitment, Customer will be eligible to receive a service credit as described below. The maximum amount of the credit is 1/12 of the annual subscription Fees paid and attributable to the Subscription Service that is unavailable for a twelve (12) month period.

The service credit is calculated by taking the number of hours the applicable Subscription Service was unavailable below the Subscription Service Commitment and multiplying it by 3% of 1/12 of the applicable annual subscription Fees. Any days prior to Customer's initial use of the Subscription Service will be deemed to have had 100% availability. Any unavailability used to calculate a prior service credit cannot be used for any future claims. The Subscription Service Commitment does not apply to any scheduled outages, standard maintenance windows, force majeure events, and outages that result from any technology issue not originating from Instructure. Customer's sole and exclusive remedy for breach of the Subscription Service Commitment in this Section 8 will be for Instructure to provide a credit as outlined in this Section 8 and only on the condition that Customer notifies Instructure in writing of such claim within thirty (30) days of becoming eligible for such claim.

Compliance. Each party shall comply with all applicable laws and regulations with respect to its activities under this Agreement, including, without limitation, (a) any and all applicable export control laws and restrictions; and (b) any laws pertaining to personally identifiable information from records that are subject to applicable privacy laws ("Personal Information").

Customer Content. As between Instructure and Customer, the information, data, results, plans, sketches, text, files, links, images, photos, videos, audio files, notes, or other materials uploaded or created by a User through the Service (collectively, "Customer Content") remain the sole property and responsibility of Customer. Customer hereby agrees that Instructure and its suppliers and licensors may access, use, or otherwise display any and all Customer Content as necessary to provide Customer and/or Users with access to and use of the Service, and to improve the Service.

Usage Data. Customer agrees that statistical and analytical data related to Instructure's provision of the Service or Customer's use and interactions with the Service (e.g., browsing history, inputs, outputs, feedback), and de-identified Customer data (collectively, "Usage Data") is owned by Instructure, and may be used by Instructure for any lawful purpose not otherwise excluded by this Agreement. Such Usage Data will only be used in its aggregated form and shall not include any information that identifies or can be reasonably used to identify an individual person. Without Instructure's prior written consent, Customer may not: (a) use Usage Data to train, develop, fine-tune, improve, or otherwise enhance artificial intelligence, including any underlying models or algorithms, whether proprietary to Customer or a third party; (b) disclose, sell, or otherwise provide Usage Data to any third party; or (c) reverse engineer or attempt to derive the underlying methodology of any Usage Data. Customer's use of the Service in the ordinary course, including viewing dashboards, reports, and analytics made available within the Service, does not constitute a violation of this provision.

Limitation of Liability. NOTHING IN THIS AGREEMENT SHALL LIMIT OR EXCLUDE EITHER PARTY'S LIABILITY FOR: (A) DEATH OR PERSONAL INJURY CAUSED BY ITS NEGLIGENCE; (B) FRAUD OR FRAUDULENT MISREPRESENTATION; OR (C) ANY OTHER LIABILITY WHICH CANNOT BE LIMITED OR EXCLUDED BY APPLICABLE LAW. EACH PARTY AND ITS SUPPLIERS SHALL NOT BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, SPECIAL, EXEMPLARY, PUNITIVE, INCIDENTAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE USE OR INABILITY TO USE THE SERVICE (INCLUDING, WITHOUT LIMITATION, COSTS OF DELAY, LOSS OR INACCURACY OF DATA, RECORDS OR INFORMATION, COST(S) OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, AND ANY FAILURE OF DELIVERY OF THE SERVICE), EVEN IF THE OTHER PARTY HAS BEEN NOTIFIED OF THE LIKELIHOOD OF SUCH DAMAGES. EXCEPT FOR A PARTY'S INDEMNITY OBLIGATIONS IN SECTION 17.1 OR CUSTOMER'S PAYMENT OBLIGATIONS, EACH PARTY'S CUMULATIVE MAXIMUM LIABILITY FOR DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT (WHETHER IN CONTRACT, TORT OR OTHERWISE) SHALL NOT EXCEED THE AMOUNT PAID BY CUSTOMER UNDER THIS AGREEMENT WITHIN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.

Confidentiality.

Definition of Confidential Information. Each party acknowledges that it, or any entity that directly, or indirectly through one or more intermediaries' controls, is controlled by or is under common control with such party (an "Affiliate"), or Instructure's licensors, may disclose (in such capacity the "Disclosing Party") Confidential Information to the other party or its Affiliates or Instructure's licensors (in such capacity, the "Receiving Party") in the performance of this Agreement. As used herein, "Confidential Information" includes, without limitation, any and all non-public, confidential and proprietary information, data, or know-how, including all Personal Information and information about the Disclosing Party's businesses, operations, finances, properties, employees, relationships with third parties, plans, trademarks, trade secrets, and other intellectual property and all analyses, compilations, forecasts, studies, summaries, notes, reports,

memoranda, interpretations, data, and other materials which contain or are generated from the Confidential Information, whether disclosed in writing, orally, electronically, or by other means, and whether or not identified as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. For the avoidance of doubt, any non-public aspect of the Service will be considered the Confidential Information of Instructure or Instructure's licensors.

Protection of Confidential Information. The Receiving Party shall: (a) protect the Confidential Information using the same degree of care that it uses to protect the confidentiality of its own Confidential Information (but in no event less than reasonable care); (b) keep the Confidential Information disclosed by the other party confidential; (c) use Confidential Information only for purposes of fulfilling its obligations and exercising its rights hereunder; and (d) disclose such Confidential Information only to the Receiving Party's employees or Affiliates who have a need to know and only for the purposes of fulfilling this Agreement or to the extent required by law.

Exclusions. Confidential Information shall not include information that: (a) is or becomes generally known to the public without breach of any obligation owed to the Disclosing Party; (b) was known to the Receiving Party prior to its disclosure by the Disclosing Party without breach of any obligation owed to the Disclosing Party; (c) is rightfully received by the Receiving Party from a third party without knowledge of breach of any obligation owed to the Disclosing Party; (d) was independently developed by the Receiving Party without the use of any Confidential Information of the Disclosing Party; or (e) is identified by the Disclosing Party in writing as no longer confidential and proprietary.

Compelled Disclosure. Notwithstanding the restrictions above, the Receiving Party may disclose the Confidential Information pursuant to law, regulation, subpoena or court orders, provided that the Receiving Party promptly notifies the Disclosing Party in writing prior to making any such disclosure to permit the Disclosing Party, at the Disclosing Party's cost, an opportunity to prevent disclosure or seek an appropriate remedy from the proper authority. The Receiving Party agrees to cooperate with the Disclosing Party in seeking such order or other remedy.

Instructure Proprietary Assets and Rights. As between Customer and Instructure, Instructure owns and shall retain all right, title, and interest in: (a) the Service; (b) all improvements, changes, enhancements, translations and components, source code, object code, documentation, criteria, designs, report formats, know-how, underlying ideas, algorithms, or structure associated with the Service; (c) all other proprietary materials of Instructure and/or its licensors; (d) all individual questions on any assessment, as well as all revisions, modifications, translations, or other adaptations or transformations thereof; and (e) all intellectual property related to the aforementioned, including, but not limited to, all copyrights, patents, trademarks and trade names, and trade secrets ("Instructure Intellectual Property"). The Instructure Intellectual Property is and shall at all times remain the sole and exclusive property of Instructure. Instructure shall have the right, in its sole discretion, to modify any Instructure Intellectual Property.

Term and Termination. The term of this Agreement is specified in the Order Form ("Term") and shall continue for its full duration unless earlier terminated by a party in accordance with this Section 15. In addition to any other rights and remedies that may be available, either party may terminate this Agreement for a material breach of any provision of this Agreement by the other party if such material breach remains uncured for thirty (30) days after receipt of written notice of such breach from the non-breaching party. In the event the Agreement is terminated, all Order Forms are simultaneously terminated. Upon expiration or termination of this Agreement: (a) Customer shall immediately cease using the Service; and (b) in connection with certain aspects of the Service that feature an export function, Customer may export the Customer Content by using the export feature within the Service for a period of three (3) months from termination, after which Instructure shall have no obligation to maintain or provide any Customer Content. Any terms that by their nature survive termination or expiration of this Agreement will survive (including, but not limited to, Sections 4, 5, 6, 12, 13, 14, 15, 17, 18, 20, and 22).

Suspension of Service. Instructure may suspend a Customer's access (and/or any of its User's access) to the Service for a violation of Sections 2 (Customer Restrictions) or 3 (Customer Responsibilities) of this Agreement, including any violation of Instructure's API Policy or AUP, any applicable law, or third-party rights to the extent and for the duration necessary to address any such violation. Instructure will use commercially reasonable efforts to provide notice to Customer in advance of any suspension unless such violation may cause direct harm to the Service or may result in liability to Instructure. Customer agrees that Instructure will not be liable to Customer or a User if Instructure exercises its suspension rights as permitted by this Section.

Indemnification.

Instructure will indemnify and defend Customer from and against any and all losses, liabilities, and claims (including reasonable attorneys' fees) arising out of any claim by a third party alleging that the Service infringes or misappropriates the intellectual property rights of that third party. Notwithstanding the foregoing, Instructure shall not be obligated to indemnify Customer if any Fees remain unpaid after they become due or where such infringement or misappropriation claim arises from: (a) the Customer Content; (b) Customer's or User's misuse of the Service, including any use of the Service by unauthorized users or after the termination of the Agreement; or (c) Customer's or User's use of the Service in combination with any products, services, or technology not provided by Instructure. If a claim of infringement or misappropriation is made, Instructure may, in its sole discretion: (i) modify the Service so that it becomes non-infringing; (ii) obtain a license permitting continued use of the Service; or (iii) terminate the Agreement with no liability to Customer, other than Instructure's obligation to indemnify hereunder, and return the unused portion of any prepaid Fees. The aforesaid remedies are the Customer's sole and exclusive remedies for any third-party claims of infringement or misappropriation of intellectual property rights relating to the Service. To the extent not prohibited by applicable law, Customer will indemnify and defend Instructure from and against any and all losses, liabilities, and claims (including reasonable attorneys' fees) arising out of any claim by a third party alleging: (x) the Customer Content infringes or misappropriates the intellectual property rights of that third party; or (y) use of the Service by Customer or any User in violation of this Agreement or the AUP.

The party seeking indemnification (the "Indemnified Party") shall provide the other party (the "Indemnifying Party") with prompt written notice upon becoming aware of any claim subject to indemnification hereunder and shall provide reasonable cooperation to the Indemnifying Party in the defense or investigation of any claim, suit or proceeding. The Indemnifying Party, at its option, will have sole control of such defense, provided that the Indemnified Party is entitled to participate in its own defense at its sole expense. The Indemnifying Party shall not enter into any settlement or compromise of any such claim, suit, or proceeding without the Indemnified Party's prior written consent, except that the Indemnifying Party may without such consent enter into any settlement of a claim that resolves the claim without liability to the Indemnified Party and without impairment to any of the Indemnified Party's rights or requiring the Indemnified Party to make any admission of liability.

Non-Performance and Relief; Force Majeure. Either party may apply to a court of competent jurisdiction for injunctive or other appropriate equitable relief restraining any threatened or actual breach of this Agreement. Each party waives any requirement that the other party post any bond or other security in the event any injunctive or equitable relief is sought by or awarded to enforce any provision of this Agreement. Instructure will not be liable for failure or delay in its performance to the extent caused by circumstances beyond its reasonable control, including, but not limited to, acts of God, natural disasters, pandemics, actions or decrees of governmental bodies, changes in applicable laws, or communication or power failures.

Notices. Any legal notice by a party under this Agreement shall be in writing and either personally delivered, delivered by email or reputable overnight courier (such as Federal Express) or certified mail, postage prepaid and return receipt requested, addressed to the other party at the address specified in the Order Form or such other address of which either party may from time to time notify the other in accordance with this Section 19. A copy of all notices to Instructure shall be sent to: Instructure, Inc., 6330 South 3000 East, Suite 700, Salt Lake City, UT 84121, Attention: General Counsel and, if by email, to legal@instructure.com.

Choice of Law. To the extent that the Instructure entity identified on the Order Form is Instructure, Inc., this Agreement shall be interpreted, governed, and construed by the laws of the State of Delaware, without regard to principles of conflict of laws. To the extent that the Instructure entity identified on the Order Form is Instructure Global Limited, this Agreement shall be interpreted, governed, and construed by the laws of England and Wales without regard to principles of conflict of laws and the parties hereby submit to the exclusive jurisdiction of the English courts.

Modifications to the Agreement. Instructure may modify this Agreement at any time by posting a revised version on Instructure's website. By continuing to use the Service after the effective date of any modifications, Customer consents to be bound by the modified terms. To the extent Instructure determines that such modification results in Instructure engaging in more permissive data practices, or materially changes Customers' rights or obligations, Instructure will notify Customer of the modifications in writing, such as by e-mail.

General. Instructure is an independent contractor to Customer. If any term of this Agreement is invalid or unenforceable, the other terms remain in effect and the invalid or unenforceable provision will be deemed modified so that it is valid and enforceable to the maximum extent permitted by law. The Parties agree that: (a) this Agreement constitutes the entire agreement between the parties with respect to the subject matter thereof, and any prior representations, statements,

and agreements relating thereto are superseded by the terms of this Agreement; and (b) Customer may use purchase orders or similar documents only as proof of acceptance of each Order Form and for convenience only, and all terms and conditions (preprinted or otherwise and regardless of how referenced) shall be void and of no effect. Any attempt by Customer to assign this Agreement, in whole or part, to any entity, without Instructure's prior written consent shall be void. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their successors and permitted assigns. Other than in respect of Instructure's Affiliates, this Agreement does not create any third-party beneficiary rights in any individual or entity that is not a party to this Agreement. Any failure by either party to enforce the other party's strict performance of any provision of this Agreement will not constitute a waiver of its right to subsequently enforce such provision or any other provision of this Agreement. Customer agrees to allow Instructure to use its name and logo in both text and pictures in its various marketing communications and materials, in accordance with Customer's trademark guidelines and policies.

09 | Product Privacy Notice Center | Instructure | Instructure

https://www.instructure.com/privacy-center

Webpage text snapshot | Retrieved 10 October 2026

Welcome to the Instructure Privacy Notice Center

Privacy at Instructure

We believe that privacy is a fundamental human right and take our responsibility very seriously. We are committed to protecting your privacy and have a dedicated privacy and security program. Our customers (educational institutions and companies) entrust us as data stewards for their users' information. We generally process user data at the direction of our customers to provide our products and services. Additionally, our general Privacy Page provides FAQs on how we uphold our privacy commitments.

Product Privacy Notices

Our Product Privacy Notice describes how we collect and process the information and data provided to us by our customers.

Instructure Summary Privacy Notice (New)

Instructure Product Privacy Notice - English

Instructure Product Privacy Notice - German

Instructure Product Privacy Notice - Dutch

Instructure Product Privacy Notice - Spanish

Instructure Product Privacy Notice - Portuguese

Parchment Digital Badges Privacy Policy

Parchment Digital Badges Business Account Privacy Policy

Canvas LMS Cookie Policy

Instructure AI Privacy Notice (New)

Instructure COPPA Privacy Notice

Instructure California Privacy Notice

Parchment Privacy Notice

LearnPlatform Privacy Policy

Digitary Privacy Notice

Third-Party Processor Guide

Instructure Biometrics Privacy Policy

Product Privacy Notice Addendum

These policy addenda apply to the specific country locations described below and supplement our standard Product Privacy Notice.

Instructure EU Privacy Policy Addendum - English

Instructure EU Privacy Policy Addendum - German

Instructure EU Privacy Policy Addendum - Dutch

Instructure EU Privacy Policy Addendum - Spanish

Instructure Brazil Product Privacy Policy Addendum - English

Instructure Brazil Product Privacy Policy Addendum - Portuguese

Instructure APAC Product Privacy Policy Addendum - English

Marketing Privacy Policy

Our Marketing Privacy Policy describes how we conduct marketing to promote our products and services. Our marketing practices are directed towards the staff of our current and potential customers. We do not advertise to students or use their personal information for marketing purposes.

Learn More

Support

You may contact us at anytime with questions by emailing us at privacy@instructure.com

Previous Versions

You can access the previous version of our Product Privacy Notice here.

10 | Institutions & Educators Privacy | FAQ

https://www.instructure.com/privacy-security/institutions-educators-faq

Webpage text snapshot | Retrieved 10 October 2026

Institutions & Educators Privacy | FAQ

Welcome! We've created this page to provide answers to questions that you might have about our privacy practises and the Canvas LMS, our virtual learning platform. You can review our complete Product Privacy Policy for Canvas users here.

What is Canvas and who is Instructure?

Canvas is a cloud-based Internet accessible virtual learning platform used by your institution to facilitate positive learning outcomes. Canvas is provided by Instructure Inc., ("Instructure") as a service provider to your institution. Canvas is used by instructors, educators, staff, administrators, parents, and students (collectively "users") to provide and engage with e-learning courses and related content. Instructure only collects data as necessary to ensure the functionality and usability of Canvas.

What Data does Canvas collect?

Canvas processes different types of data as described below. All of these data types are collectively referred to as "data".

Personal Data

Personal data is generally defined as information related to an identified or identifiable person. By using Canvas, personal data from a user is processed and stored by Canvas. Canvas only processes personal data to the extent necessary for the provision of user content and the operations of Canvas. Canvas receives personal data directly from the institution's student information system, or administrative user, or users directly. Personal data elements in Canvas may contain names, email addresses, student identification numbers, and user roles (e.g., student).

Canvas also allows users to enter optional information such as phone numbers, gender, personal pronouns, avatar photos, descriptive information, or links to social media. This information is voluntary and may be changed or deleted by the user at any time.

Institution Data

Institutional data is also processed by Canvas. This may include enrollments, administrators, course, assignments, assessments, institution URL, institution specific settings, SIS integrations, institutional Wiki, and calendars.

User-Generated Content

When participating in courses or using Canvas, users may submit exercises, assignments, tests, course materials, or learning modules (collectively "user content"). User content is stored in Canvas and may only be viewed, updated, or deleted by the submitting students, instructors, course administrators, or administrator users from the institution. Instructure is not able to directly delete, modify, or update user content except as directed by the institution. Instructure does not acquire any ownership rights in user content.

System Data

When using Canvas, transactional system data is generated and stored in the database. By participating in courses, groups, tests, assignments, forums, blogs, etc., an assignment between a user's internal ID and the internal object or reference ID of the respective object in Canvas is created. This data is stored in the Canvas database. System data also includes data generated by Canvas such as log files. System data is recorded for system technical and system analytics purposes.

One of those analytics purposes is to determine what Canvas features and functions are being used, or preferred by users. In this example, Canvas uses certain cookies to collect analytic and session data for users, but this does not contain personal data.

Log Files

Canvas generates system log files for error reporting if an internal error occurs while processing data. Log files are only used by Canvas and Instructure to solve technical issues and are deleted regularly. The collection of log files is necessary for the operation of Canvas.

How does Instructure and Canvas use the data?

Instructure uses data to provide Canvas and any associated services. Instructure processes data in the following ways: to create and maintain a user account; to identify a user in Canvas; to operate, maintain, and improve the functionality of Canvas; to personalise and improve a user's experience using Canvas; to send users administrative e-mail; to respond to user comments or enquiries; and to protect, investigate, and to deter against fraudulent, unauthorised, or illegal activity. Instructure does not use data for any other purposes except as described in the governing contract with the institution and our Privacy Policy.

Who else has access to the data?

Instructure only uses data to provide Canvas to the institution, administrators, students, parents, and educators.

Instructure does not sell Canvas data to third-parties, even in anonymized or aggregated form.

Instructure does not use Canvas data to advertise to students, parents, or educators.

Instructure does not share personal data or user content with other companies that do not have permission to see or access the data as described in the contract between Instructure and the institution.

Instructure does not share personal data or user content with other companies that do not have permission to see or access the data as described in the contract between Instructure and the institution or our Privacy Policy.

Data is accessible to the applicable institution, teachers, and administrators based on user roles established by the institution. Profile data and personal data are accessible by the institutional administrators and educators.

Instructure uses certain companies to help us provide underlying services to operate Canvas. These companies operate as service providers, or sub-processors to Instructure. Canvas is hosted on Instructure's servers at Amazon Web Services (AWS). However, AWS does not have direct access to an institution's data. For a full list of Instructure's underlying service providers please email privacy@instructure.com.

What about other tools that are connected through Canvas?

Institutional administrators may choose to connect their Canvas to other services or external tools, such as a Student Information System or a video conferencing system, in order to support teaching and learning. In these cases, the setup of the tool or service may require the exchange of some information with Canvas.

For example, an English department may connect a document annotation tool to Canvas using the LTI standard. This tool would then be available to all teachers and students, who might need to let this tool receive a limited amount of student information in order to work properly.

These tools or services will have their own privacy policies for schools, teachers, or students that don't involve Canvas. With most tools, users will be able to review or change the permissions that they give these tools from within Canvas.

Cookies in Canvas

A cookie is a small data file that is sent to a user's browser when the user visits a website. Cookies can last only for the duration of a session (session cookies) or for several days, months, or years (persistent cookies). Cookies are browser specific which means that the cookie is attached to and stored in a specific browser. Cookies are used by Canvas for functional and analytical purposes. Canvas uses two types of cookies – functional cookies and analytic cookies.

Functional cookies are necessary and used to identify a user across page views without requiring the user to authenticate themselves for each page. These cookies are set when a user first logs into Canvas and remains in place until the user logs off Canvas or closes their browser.

Analytics cookies are used by Instructure to improve the software, detect fraud, and troubleshoot problems that may arise in Canvas.

How can institutions and individuals access the data?

Whether to enable home-grown solutions or just to satisfy curiosity, Instructure believes that institutions and individuals should have access to data. Canvas therefore provides institutions, administrators, and users with secure data access, scoped to a user's permissions, in the following ways, at no extra cost:

Large-scale data from their entire Canvas instance via Canvas Data Service

Live streaming of important data elements via Canvas Live Events

On-demand data from most tools and features via the Canvas Open API

On-demand reports using Canvas Reports

How can data be deleted from Canvas?

Instructure will delete an institution’s data from Canvas upon request by the institution, or after termination of the applicable agreement between Instructure and the institution. User administrators at the institution can delete user accounts in Canvas whenever needed. Instructure will delete a user account and associated data upon request from that user if Instructure is permitted to by the governing institution. Users can request individual deletion by submitting a help desk ticket in Canvas, or by contacting your institution directly.

If you have any questions, please reach out to privacy@instructure.com.

11 | Students & Parents Privacy | FAQ

https://www.instructure.com/privacy-security/students-parents-faq

Webpage text snapshot | Retrieved 10 October 2026

Students & Parents Privacy | FAQ

Welcome! We've created this page to provide answers to questions that students and parents might ask about our privacy policies and practises for Canvas LMS, our virtual learning platform. If you're a university student, visit the "Institutions & Educators" page for more information. You can review our detailed Product Privacy Policy here.

What is Canvas and who is Instructure?

Canvas is a virtual learning platform (software) that has been purchased by your school, or teacher to provide you with online learning tools. You can access Canvas on your computer, mobile phone, or tablet. Instructure is the company that develops Canvas and operates the software.

What information do we collect and where does it come from?

Canvas receives information about students from a few different sources which are all related to your school's use of Canvas. Canvas receives information directly from your school when your school sends Canvas information to create your user account in Canvas. This can include: your name, email address, level, and school name, date of birth (if provided by your school), gender preference, language selection, and country. This is considered "personal information".

Canvas also receives information directly from you when you use Canvas to participate in your classes. This can include class assignments, test & quiz responses, discussion group comments, homework assignments, and conversations with teachers and other students. Canvas also receives information from your teachers such as grades for your assignments and tests, or when your teacher sends you messages.

How do we use your information?

Canvas uses your information inside of Canvas to support teaching and learning and to help educators drive student success. Beyond enabling Canvas to work, your information may be used to...

Communicate with you and provide support

Create and administer user accounts.

Improve Canvas functionality: For example, identifying what features are useful to our users.

Develop and maintain security and performance of Canvas.

Exercise, enforce and comply with legal rights and obligations

Who else has access to your information?

Instructure only uses your information to provide our Canvas service to you and your school. We do not sell your information to other companies. We do not use your information to advertise to you. We do not share your information with companies or people that do not have explicit and known permission to see or access your information. Your user information is accessible to your school, teachers, and administrators. Your submitted content information (for example: assignments, projects, discussion group content) is accessible only by your teachers and approved institutional administrators. Your scores and grades are accessible by your teachers and approved school officials.

Instructure works with a limited number of companies to help us provide underlying services to operate Canvas. For example, Canvas is hosted on Instructure's servers at Amazon Web Services (AWS). However, AWS does not have direct access to your information.

What about other tools that are connected through Canvas?

Your school or teacher may choose to connect their use of Canvas to other tools or services, such as a Student Information System or a video conferencing system, in order to support teaching and learning. In these cases, your school or teacher may decide if any information needs to be exchanged with Canvas.

For example, a teacher may connect a math practise tool to their Canvas course, which might need student names or IDs in order to recognise individual students and send scores back to Canvas.

These tools or services will have their own privacy policies for schools, teachers, or students that don't involve Canvas. With most tools, users will be able to review or change the permissions that they give these tools from within Canvas.

Cookies in Canvas

A cookie is a small data file that is sent to a user’s browser when the user visits a website. Instructure uses cookies to improve your experience while using Canvas. Cookies can last only for the duration of a session (session cookies) or for several days, months, or years (persistent cookies). Cookies are browser specific which means that the cookie is attached to and stored in a specific browser. Cookies are used by Canvas for functional and analytical purposes. These cookies are classified as either “functional cookies” or “analytics cookies”.

Functional cookies are used by Canvas to operate web pages, keep you logged into Canvas when you want, and display web pages correctly.

Instructure uses analytics cookies to collect information about how you use Canvas, such as what pages you click on, or what functionality you use the most. The information collected does not contain personal data about you. But it helps us improve Canvas and your experience using it.

How to access your information?

Canvas believes in empowering students just as we empower teachers, and so we provide several ways that students can access their own information and related data that is stored in Canvas (subject to permissions given by your institution). For example:

All of your assignment submissions can be downloaded at any time.

You can see your scores and course analytics, the same way teachers see them.

You can see page view data and other information stored in Canvas, via the Canvas open API.

Note that you will only ever have access to information you are supposed to see in Canvas

How to delete your information or account?

Occasionally a student may want or need Canvas data permanently deleted. You can request that Instructure delete your information from Canvas, or delete your user account, or profile. If your account was set up by your school, we may need to ask your school for permission to delete your account and data since we don’t own any of your data. To delete an account or information, students and parents can submit a helpdesk ticket in Canvas, or contact their school directly.

If you have any questions, please reach out to privacy@instructure.com

12 | Security

https://www.instructure.com/trust-center

Webpage text snapshot | Retrieved 10 October 2026

Instructure Trust Center

In the pursuit of delivering dynamic learning experiences to every learner, everywhere, trust emerges as the bedrock upon which we build meaningful relationships with our customers and users.

The Instructure Trust Center exists to share how we secure our platform and foster genuine human connections to create the ideal environment for learning to happen.

Security

We build security into the fabric of our cloud platform, infrastructure, and processes, and we'll continue to reassess our security posture.

Learn More

Compliance

We consider compliance a top priority and consistently strive to uphold the highest standards of regulatory compliance and industry best practices. We've established a comprehensive framework of essential components to ensure our compliance objectives are met.

Learn More

Availability

At Instructure, we pride ourselves on the exceptional level of uptime we offer to our valued customers. With unwavering confidence in our systems, we not only guarantee but consistently deliver an annual uptime of 99.9%.

Learn More

Privacy

We believe that privacy is a fundamental human right. Our Privacy Center details our commitment to this and explains how we process user data at our customers' direction to provide our products and services. Additionally, the FAQs on our privacy page detail how we uphold our privacy commitments.

Learn More

Guiding Principles

Our customers trust Instructure to keep their learning environments secure and reliable. We hold ourselves to that same standard.

We build security, privacy, and compliance into everything we do (from product design to daily operations).

We align with global and industry-recognized standards, continuously assess our controls, and maintain readiness for any potential incident.

Our goal is simple: to protect what powers learning and to help our customers do the same.

Additional Resources

This is your one-stop shop for all things security, privacy, accessibility, and compliance. Customers can access public-facing docs, plus log in for protected resources like reports or certifications.

Customer Trust Portal

Foreword from the CEO

Dear Customers,

Welcome to our new Trust Center, a website to highlight our commitment to building products that are secure and private by design. I deeply value that learners, educators, and all in the learning community entrust us with the responsibility of safeguarding their data. In return, we at Instructure remain committed to earning your trust through

consistent action and transparency, carried out through the following:

design our products to gather only the necessary data to deliver our services

exercise full transparency surrounding our privacy and security processes

build security and privacy into all our products and all areas of our business

I also want to emphasize that our dedication to security and privacy begins at the highest levels of our organization—starting with me, and our board. Your faith in us drives us to continuously innovate and exceed your expectations. Together, we'll shape a future where education and technology coexist harmoniously, built on the pillars of trust, security, and privacy.

Thank you for being on this journey with us.

Keep learning,

Steve Daly

Report a security vulnerability

If you're a professional security researcher who's discovered a vulnerability in an Instructure product or service, please submit your findings to us.

Notify us

13 | AI Governance

https://www.instructure.com/trust-center/ai-governance-responsibility

Webpage text snapshot | Retrieved 10 October 2026

Generative AI governance and responsibility

Guiding ethical, trustworthy AI in learning

At Instructure, we believe artificial intelligence should amplify human potential, not obscure it. That means our AI systems and features align with our mission to elevate teaching, deepen learning, and put people first. Our approach to AI governance brings together rigorous oversight, transparent purpose, and collaborative responsibility.

Our guiding principles

We follow six core principles in how we design, deploy, and govern AI:

Responsibility

We prioritize educational goals over shortcuts. We avoid AI that encourages dishonesty or automates high-stakes decisions without human oversight.

Transparency

We explain how AI works and when AI is used in our products and services via AI Nutrition Facts.

Integrity

AI should enhance learning, not replace it. Our tools summarize and support, but won't write essays or complete assignments for learners.

Fairness

As in all of our products, we design AI to be fair and prevent bias.

Privacy

Customer data is not used to develop or train our AI systems unless your institution authorizes it. Data used with our AI features is not retained for secondary use.

Inclusivity

AI can be a force for accessibility. Our products adhere to WCAG and ADA standards to support students with language barriers and differing learning needs.

AI governance

We want institutions to feel confident that when they choose Instructure, they’re choosing a

partner that treats responsible AI as a core part of how we build and operate. Our approach is simple.

A cross-functional governance team you can trust

The center of our program is the AI steering committee, a group of leaders from product, engineering, privacy, legal, security, and our academics team. This team meets to guide our AI direction, review new initiatives, and ensure we align our products with our values and your institutional expectations.

Clear guardrails and thoughtful review

We follow a structured set of AI policies, from our AI governance policy to our AI acceptable use policy. This defines how AI is designed, reviewed, and monitored at Instructure.

Every new AI capability is evaluated by privacy; governance, risk, and compliance (GRC) security; and product teams to confirm data protections, responsible use, and alignment with laws and our contractual commitments. Every AI tool goes through the same rigorous review that all of our software does.

Your role and how you can engage

Responsible AI works best when everyone plays a part. Here’s how institutions, school administrators, and partners can stay engaged and empowered:

Review our AI features

Review the options you have for AI features, and choose what works best for you.

Stay informed about our updates

Keep an eye on release notes, trust center updates, and AI-related communications.

Encourage human oversight

AI should support, not replace your decision-making. Build internal practices that keep people in the loop for meaningful or high-impact decisions.

Promote responsible use in your organization

Share training materials, and help colleagues understand best practices and how to use AI.

Provide feedback

Tell us what’s working or what could better support your workflows.

We see AI as a shared responsibility, and your voice, questions, and expectations help shape how we build it responsibly. Visit our Trust Center Library for more on privacy, security, compliance, and AI: Instructure Trust Center.

14 | Compliance

https://www.instructure.com/trust-center/compliance

Webpage text snapshot | Retrieved 10 October 2026

Instructure Trust Center

Compliance

At Instructure, we consider compliance as a top priority and consistently strive to uphold the highest standards of regulatory compliance and industry best practices. We have established a comprehensive framework that encompasses various essential components to ensure our compliance objectives are met.

Continuous Monitoring

We maintain a vigilant and proactive approach to monitoring compliance-related activities, allowing us to promptly identify and address any deviations from established standards.

Regular audits and assessments are conducted to validate adherence to relevant frameworks, such as SOC 2 Type 2, ISO 27001, and NIST 800-53. These audits provide us with a comprehensive view of our compliance posture and enable us to take prompt corrective actions when necessary.

Metrics Development and Reporting

We employ a rigorous metrics development and reporting process to track and measure our compliance performance accurately. This enables us to assess the effectiveness of our compliance initiatives and make data-driven decisions.

External Assessment

We engage in regular external assessments and audits conducted by independent experts to validate our compliance efforts. These assessments provide valuable insights and assurances to our stakeholders, regulatory bodies, and customers.

Our Compliance

ISO 27001

ISO (International Organization for Standardization) is a worldwide federation of national standards bodies. ISO is a nongovernmental organization that comprises standards bodies from more than 160 countries, with one standards body representing each member country.

TX-RAMP

A TX-RAMP assessment is a comprehensive evaluation of Instructure’s information security controls and practices to ensure compliance with the security requirements set by the Texas Department of Information Resources (DIR).

TRUSTe Enterprise Privacy & Data Governance

The TRUSTe Enterprise Privacy Certification Seal is obtained through a set of privacy assurance programs that enable companies that collect or process information to demonstrate responsible data collection and processing practices consistent with regulatory expectations and external standards for privacy accountability.

SOC 2

A SOC assessment is an evaluation conducted to assess the effectiveness of Instructure’s controls and processes related to security, availability, processing integrity, confidentiality, and privacy of it’s systems and data.

If you are an existing customer, please reach out to your designated Customer Success Manager (CSM) or Regional Director to request the appropriate report. If you are a prospective customer, please email us at info@instructure.com

Cyber Essentials / Cyber Essentials Plus

Cyber Essentials is a UK government-backed certification scheme that helps Instructure demonstrate their commitment to cybersecurity best practices and protect against common cyber threats. Cyber Essentials Plus is an advanced level of certification that involves more rigorous testing and verification to provide a higher level of assurance in Instructure’s cybersecurity defenses.

PCI DSS

A PCI DSS assessment is a thorough evaluation of Instructure’s payment card industry data security standards compliance to ensure the secure handling of cardholder information and maintain a secure payment environment.

Risk Management Program

We have implemented a robust Risk Management Program that encompasses the identification, assessment, mitigation and monitoring of risks across Instructure. The program enables us to proactively manage risks and ensure compliance with applicable regulations.

Risk Identification and Reporting

Risk Identification and reporting are integral to our Risk Management Program at Instructure. Our dedicated team collaborates with stakeholders to systematically identify and assess potential risks. Through a structured reporting framework, we provide timely updates to key stakeholders, including clear risk descriptions, potential consequences, and recommended mitigation strategies. Our commitment to transparency and ongoing evaluation ensures a proactive risk management culture, safeguarding Instructure’s interests and enhancing resilience.

Third-Party Risk

We have established stringent processes to evaluate and manage the risks associated with third-party relationships. New third-parties are assessed prior to on-boarding and vendors with access to sensitive and personal data are assessed annually. Through assessments and ongoing monitoring, we mitigate potential risks arising from our business partners.

Risk Communications and Leadership Oversight

Effective risk communications and leadership oversight are integral to our compliance efforts. We ensure clear and transparent communication channels for reporting and addressing compliance-related issues. Our leadership team provides guidance, oversight, and support to foster a culture of compliance throughout the organization.

Support

Get the Support You Need

Contact Security

15 | Legal

https://www.instructure.com/trust-center/legal

Webpage text snapshot | Retrieved 10 October 2026

Legal

Find legal information and resources whether you are a prospective or existing customer or partner. You'll find answers to questions about our agreement terms, policies, intellectual property, and compliance.

Customers

Partners

Policies and other documentation

Master Terms and Conditions

When your organization purchases or subscribes to any of our products or services, the arrangement is subject to our Master Terms and Conditions. These outline the basics: what we both promise to do, how you can use our products, any limits or restrictions, fees, warranties, and other important details.

Privacy and Data Protection

We publish privacy notices that explain how we collect, use, store, and protect personal data. We adhere to principles of transparency, security, integrity, confidentiality, and accountability.

Data Processing Addendum

Instructure's Data Processing Addendum outlines how we process, protect, and govern personal data under our customer agreements, including GDPR and global compliance terms.

Acceptable Use Policy

Our Acceptable Use Policy covers how our services can be used. It explains what’s not allowed (e.g., unauthorized access, disrupting the services, or other misuse) and when those rules are considered broken.

Privacy and Data Protection

We publish privacy notices that explain how we collect, use, store, and protect personal data. We adhere to principles of transparency, security, integrity, confidentiality, and accountability.

Partner and Reseller Terms & Conditions

If you participate in our partner program, your relationship with Instructure is governed by specific Partner Terms and Conditions.

Data Processing Addendum

Instructure's Data Processing Addendum outlines how we process, protect, and govern personal data under our customer agreements, including GDPR and global compliance terms.

Acceptable Use Policy

Our Acceptable Use Policy covers how our services can be used. It explains what’s not allowed (e.g., unauthorized access, disrupting the services, or other misuse) and when those rules are considered broken.

Privacy and Data Protection

We publish privacy notices that explain how we collect, use, store, and protect personal data. We adhere to principles of transparency, security, integrity, confidentiality, and accountability.

Intellectual Property

Our Agreements define the ownership of intellectual property as between Instructure and you. Any licenses we grant to use Instructure trademarks are subject to the Instructure brand guidelines.

Data Processing Addendum

Instructure's Data Processing Addendum outlines how we process, protect, and govern personal data under our customer agreements, including GDPR and global compliance terms.

Legal Compliance

Here you'll find information and documentation regarding how Instructure maintains compliance with local and international laws, as well as accessibility mandates.

Accessibility Mandates

Modern Slavery Act

Trust is the foundation of our business. Full stop.

It's what allows our customers and partners to choose us — and stay with us. So we treat it that way. Not as a tagline, not as a checkbox. As a responsibility.

For us, trust shows up in the details:

Being rigorous about data privacy and protection.

Holding ourselves to high standards of governance and compliance.

Building and innovating responsibly, with ethics at the center — not bolted on at the end.

This isn't optional work. It's core to who we are.

Our commitment is simple: we will protect what's entrusted to us and lead with integrity in everything we build, every decision we make, and every partnership we support.

That's the standard. And we hold ourselves to it — every day.

Matt Kaminer,

Chief People and Legal Officer

Contact information

Legal Department

Instructure, Inc.

6330 South 3000 East, Suite 700

Salt Lake City, Utah 84121 USA

Email: legal@instructure.com (for policy- or agreement-related inquiries)

Disclaimer

This page provides a summary of major legal documents and policies. It does not replace or modify the actual agreements or policies, which govern your legal rights and responsibilities. For full terms, always refer to the agreement or policy text itself.

16 | Security

https://www.instructure.com/trust-center/security

Webpage text snapshot | Retrieved 10 October 2026

Instructure Trust Center

Instructure Security

We built security into the fabric of our cloud platform, infrastructure, and processes, and we'll continue to reassess our security posture so you can rest assured your data is safeguardedto keep our products available and safe for use.

For information related to the security incident, please visit https://www.instructure.com/incident_update.

Information Security Management System

The Information Security Management System (ISMS) is designed to provide a structured approach to protecting information, ensuring its confidentiality, integrity, availability, and privacy while helping Instructure comply with legal, regulatory, and contractual obligations, ensuring alignment with ISO/IEC 27001:2022.

Key Areas Supporting the Information Security Management System

Risk Assessment and Treatment

Instructure assesses and treats risks, including methodologies, risk criteria, and the process for identifying, evaluating, and mitigating risks to acceptable levels.

Access Control

Establishes controls to manage access to information and systems, ensuring that access is restricted to authorized users based on their roles and responsibilities.*

Operations Security

Manage daily operations securely, such as malware protection, backups, logging, monitoring, and secure configuration of systems.

Communications Security

Protects the security of communications, including network security management, secure transfer of information, and protection against unauthorized access.

Human Resources Security

Address security considerations for employee lifecycle management, including screening, onboarding, training, and termination of staff to minimize insider threats.

Logging and Monitoring

Requires security logs and monitoring activities to detect and respond to unauthorized actions or security breaches.

Secure Development

Integrating security into the software development lifecycle, including secure coding, vulnerability scanning, and secure deployment practices.

Anti-Malware

Protect against malware threats, including anti-malware software, regular updates, and user awareness training.

Acceptable Use

Acceptable and prohibited behaviors for using the organization's information systems, ensuring users are aware of their responsibilities in maintaining security.

Information Security Awareness and Training

Instructure's Compliance, Privacy, and Security Awareness Training upon hire, as per our employment terms and conditions, and annually thereafter to ensure that all employees and contractors understand their role in protecting

information.

*Further, any Instructure employee accessing a customer instance has to provide a logged reason for that specific instance and re-authenticate through Okta when performing any sensitive operations. On the account permissions level, we have restricted administrative access to trusted locations only and added rate limits to block automated attempts by unauthorized actors to identify valid accounts. We have also locked down sensitive admin functions and tightened API access controls so that internal tools can only use internal APIs and third-party integrations are restricted by geographic location and network rules.

Platform Security

Cloud Security Top of Mind

The Instructure learning platform is hosted on Amazon Web Services (AWS) with security top of mind. This includes conforming with AWS' well-architected framework, implementation of control plane hardening standards and benchmarks, and continuous workload monitoring.

Instructure's products are designed to make full use of AWS' security tools and services. Amazon Web Services (AWS) holds a variety of formal accreditations including ISO 27001, FedRAMP, and SOC 1/2/3, among others. Customer data sits in separate databases, and, in many cases, on separate application servers.

Vulnerability Disclosure Program

Instructure highly values the security research community's engagement and involvement in contributing to the enhancement of the security of our products and services. To facilitate and optimize this endeavor, we have established a responsible vulnerability disclosure policy and a private bug bounty program. Before conducting any form of security research on Instructure's products and services, please thoroughly review Instructure's Vulnerability Disclosure policy.

If you are interested in participating in our ongoing private Bug Bounty Program, please contact security@instructure.com and provide your Bugcrowd username.

Should you wish to report a security vulnerability or defect, please utilize our Responsible Disclosure Form.